



CHAPTER clxxxv.

An Act to confirm certain Provisional Orders of the A.D. 1911.
Local Government Board relating to Cambridge and
Southport. [16th December 1911.]

WHEREAS the Local Government Board have made the
Provisional Orders set forth in the schedule hereto under
the provisions of the Local Government Act 1888:

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Orders should be
confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Orders as altered and set out in the schedule
hereto shall be and the same are hereby confirmed and all the
provisions thereof shall have full validity and force. Orders in
schedule
confirmed.

2. Whereas a Joint Committee of the House of Lords and
House of Commons has been appointed to inquire into the
application of the provisions contained in the Local Government
Acts 1888 and 1894 and the Local Government (Scotland) Acts
1889 and 1894 relating to financial adjustments consequent on
the alteration of the boundaries of a local government area or
on an alteration in the constitution or status of the governing
body of a local government area and to report if they are of
opinion that any amendments in such provisions are desirable
Be it therefore enacted as follows:— Financial
adjustments
to be in
accordance
with recom-
mendation
of Joint
Committee.

(1) Notwithstanding the provisions of the Local Government
Act 1888 the Local Government Act 1894 and of the
two Orders set forth in the schedule to this Act

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relating to financial adjustments no adjustments to be made between the councils of the county and county boroughs referred to in the Order relating to Southport or between the councils of the county and the borough referred to in the Order relating to Cambridge or between any authorities affected by either of the said Orders or this Act shall be made except by agreement until after the thirty-first day of March one thousand nine hundred and thirteen or until the confirmation of a Provisional Order made in pursuance of this section whichever shall be the earlier:

(2) If the said Joint Committee report that they are of opinion that amendments are desirable in the provisions contained in the Local Government Acts 1888 and 1894 relating to financial adjustments consequent on the alteration of the boundaries of a local government area the Local Government Board shall in relation to each of the said Orders make such Provisional Order as shall be necessary for the purpose of applying the recommendations of the Joint Committee so far as they are applicable to any adjustments to be made between the councils of the county and county boroughs or borough as the case may be and the other authorities referred to in subsection (1) of this section. Provided that no Provisional Order made in pursuance of this section shall affect any adjustment that may have been made by agreement:

(3) The provisions of the Local Government Act 1888 relating to Provisional Orders shall so far as they are applicable and with any necessary modifications extend and apply to any Provisional Order made in pursuance of this section.

Short title.

3. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 10) Act 1911.

SCHEDULE.

A.D. 1911.

BOROUGH OF CAMBRIDGE.

Provisional Order made in pursuance of Sections 54 and 59 of the Local Government Act 1888. *Cambridge Order.*

To the Mayor Aldermen and Burgesses of the Borough of Cambridge ;—

To the Court of Quarter Sessions for the said Borough ;—

To the Justices of the Peace for the said Borough ;—

To the Chancellor Masters and Scholars of the University of Cambridge ;—

To the Justices of the Peace for the County of Cambridge in Quarter Sessions assembled ;—

To the County Council of Cambridge ;—

To the Urban District Council of Chesterton ;—

To the Rural District Council of Chesterton ;—

To the Guardians of the Poor of the Parish of Cambridge ;—

To the Guardians of the Poor of the Chesterton Union ;—

To the Parish Councils of Cherry Hinton Grantchester Milton and Trumpington ;—

To the Overseers of the Poor of the Parishes of Cherry Hinton Chesterton Grantchester Milton and Trumpington ;—

And to all others whom it may concern.

WHEREAS by Section 54 of the Local Government Act 1888 the Local Government Board are empowered to make a Provisional Order for altering the boundary of any Borough ;

51 & 52 Vict.
c. 41.

And whereas the Borough of Cambridge in the County of Cambridge is a Borough within the meaning of the Local Government Act 1888 and the inhabitants are a body corporate by the name of the Mayor Aldermen and Burgesses of the Borough of Cambridge and act by the Council of the said Borough which now consists of the Mayor (who is also an Alderman) eleven other Aldermen and thirty-six Councillors and two Aldermen and six Councillors are elected to represent the University of Cambridge and the said Borough is for the purposes of the election of the remaining thirty Councillors divided into ten wards ;

And whereas the said Borough is co-extensive with the Parish of Cambridge and is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council are the Urban District Council ;

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2 Edw. 7.
c. 42.

And whereas the said Borough has a separate court of quarter sessions commission of the peace police force recorder and coroner;

And whereas in pursuance of the Education Act 1902 the Council of the said Borough are the local education authority for the purposes of Part III. of that Act and the County Council of Cambridge are the local education authority for the other purposes of that Act;

And whereas the unrepealed provisions of the Local Acts specified in Part I. of the Schedule A. to this Order and of the Confirmation Acts specified in Part II. of the said schedule so far as the last-mentioned Acts relate to the Orders specified in that schedule are in force in the said Borough;

And whereas the Urban District Council for the said Borough or their predecessors have adopted the provisions of—

53 & 54 Vict.
c. 34.

(A) The Infectious Disease (Prevention) Act 1890;

53 & 54 Vict.
c. 59.

(B) The Public Health Acts Amendment Act 1890; and

7 Edw. 7.
c. 40.

(C) The Notification of Births Act 1907;

and those provisions are accordingly in force in the said Borough;

9 & 10 Vict. c. 74.
10 & 11 Vict. c. 61.
41 & 42 Vict. c. 14.
45 & 46 Vict. c. 30.
59 & 60 Vict. c. 59.
62 & 63 Vict. c. 29.
55 & 56 Vict. c. 53.
56 Vict. c. 11.
1 Edw. 7. c. 19.

And whereas the Baths and Washhouses Acts 1846 to 1899 and the Public Libraries Acts 1892 to 1901 are in force in the said Borough;

And whereas the Urban District of Chesterton in the County of Cambridge immediately adjoins the said Borough and is co-extensive with the Parish of Chesterton and is subject to the jurisdiction of the Urban District Council of Chesterton;

And whereas the Urban District Council of Chesterton or their predecessors have adopted the provisions of the Infectious Disease (Prevention) Act 1890 and the Public Health Acts Amendment Act 1890 and those provisions are accordingly in force in the Urban District of Chesterton;

And whereas the Public Libraries Acts 1892 to 1901 are in force in the Urban District of Chesterton;

And whereas the Parishes of Cherry Hinton Grantchester and Trumpington in the County of Cambridge immediately adjoin the said Borough and are contributory places in the Rural District of Chesterton and are subject to the jurisdiction of the Rural District Council of Chesterton and the Parish of Cherry Hinton is divided into two wards named respectively the St. John's Ward and the St. Andrew's Ward for the purpose of the election of Rural District Councillors and two Rural District Councillors are elected for each of those wards and two Rural District Councillors are elected for each of the Parishes of Grantchester and Trumpington;

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And whereas the Parish of Milton in the County of Cambridge immediately adjoins the Urban District of Chesterton and is a contributory place in the said Rural District and is subject to the jurisdiction of the said Rural District Council and one Rural District Councillor is elected for that parish ;

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And whereas the said Rural District Council or their predecessors have adopted the provisions of the Infectious Disease (Prevention) Act 1890 and the provisions of Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts and those provisions are accordingly in force in the said Rural District ;

And whereas the Lighting and Watching Act 1833 has been adopted in the Parish of Trumpington and in part of each of the Parishes of Cherry Hinton and Grantchester ;

3 & 4 Will. 4.
c. 90.

And whereas a separate Board of Guardians is elected for the Parish of Cambridge ;

And whereas the Parishes of Chesterton Cherry Hinton Grantchester Milton and Trumpington are included in the Chesterton Union and the Parish of Chesterton is divided into four wards named respectively the North Ward the South Ward the East Ward and the West Ward for the purpose of the election of guardians and two guardians are elected for each of those wards and the two Rural District Councillors elected for each of the wards of the Parish of Cherry Hinton and the two Rural District Councillors elected for each of the Parishes of Grantchester and Trumpington and the Rural District Councillor elected for the Parish of Milton are the representatives of those Parishes or the wards of those Parishes respectively on the Board of Guardians of the said Union ;

And whereas in pursuance of the Education Act 1902 the Parishes of Chesterton Cherry Hinton Grantchester Milton and Trumpington form part of the area of the County Council of Cambridge as the local education authority ;

And whereas the Parishes of Cherry Hinton Grantchester Milton and Trumpington are rural parishes within the meaning of the Local Government Act 1894 for each of which a Parish Council has been established ;

56 & 57 Vict.
c. 73.

And whereas the Corporation were empowered by Section 13 of the Cambridge Corporation Act 1850 to borrow money for the purposes of that Act and of the Acts incorporated therewith and by Section 22 of that Act provision was made for the establishment of a sinking fund to be applied in paying off any moneys so borrowed and of the moneys borrowed by the Corporation under the first-mentioned section there was outstanding on the Thirty-first day of March One thousand

13 & 14 Vict.
c. xxxvii.

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A.D. 1911. nine hundred and eleven in respect of the same the sum of Thirty-six thousand seven hundred and five pounds and twelve shillings;

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And whereas by Section 20 of the 'Cambridge University' and Corporation Act 1894 the Corporation of the said Borough were empowered to make byelaws in respect to the commons referred to in Part IV. of that Act:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect:—

Definitions.

Art. I. In this Order—

- (1) The expression "the commencement of this Order" means the First day of April One thousand nine hundred and twelve;
- (2) The expression "the existing Borough" means the Borough of Cambridge as it existed immediately prior to the commencement of this Order;
- (3) The expression "the Borough" means the existing Borough as extended by this Order;
- (4) The expression "the Corporation" means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or, of the Borough acting by the Council;
- (5) The expressions "the County" and "the County Council" mean respectively the Administrative County of Cambridge and the County Council of that County;
- (6) The expressions "the Urban District" and "the Urban Council" mean respectively the Urban District of Chesterton and the Urban District Council of that District;
- (7) The expressions "the Rural District" and "the Rural Council" mean respectively the Rural District of Chesterton and the Rural District Council of that District;
- (8) The expression "the Borough maps" means the two maps each marked "Map of the Borough of Cambridge as extended 1911" and sealed with the official seal of the Local Government Board;
- (9) The expression "the Ward maps" means the two maps each marked "Map of the Wards of the Borough of Cambridge as constituted by the Cambridge (Extension) Order 1911" and sealed with the official seal of the Local Government Board;

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- (10) The expression "the added areas" means the part of the Urban District and the parts of the Rural District added to the existing Borough by this Order; A.D. 1911.
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Order.
- (11) The expressions "the added part of the Urban District" and "the excluded part of the Urban District" mean respectively the part of the Urban District which is coloured blue on the Borough maps and the remaining part of the Urban District the expressions "the added part of Chesterton" and "the excluded part of Chesterton" mean respectively the part of the Parish of Chesterton included within the Borough by this Order and the remaining part of that Parish and the expressions "the added part of Cherry Hinton" "the added part of Grantchester" and "the added part of Trumpington" mean respectively the parts of those Parishes which are respectively coloured green brown and purple on the Borough maps;
- (12) The expressions "the existing Parish of Chesterton" "the existing Parish of Cherry Hinton" "the existing Parish of Grantchester" "the existing Parish of Milton" and "the existing Parish of Trumpington" mean in each case the Parish as it existed immediately prior to the commencement of this Order the expressions "the Parish of Chesterton" "the Parish of Cherry Hinton" "the Parish of Grantchester" "the Parish of Milton" and "the Parish of Trumpington" mean in each case the Parish as altered by this Order and the expression "the Parish of Cambridge Without" means the Parish of Cambridge Without as constituted by this Order;
- (13) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;
- (14) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;
- (15) The expression "the existing debt" means the sum outstanding at the commencement of this Order in respect of the moneys borrowed by the Corporation under Section 13 of the Cambridge Corporation Act 1850 for the purposes of that Act and the Acts incorporated therewith.

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Order.*

Commence-
ment of
Order.

Date of
operation
of Order for
parish bur-
gess lists &c.
51 Vict. c. 10.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the First day of April One thousand nine hundred and twelve:

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the Borough under the Municipal Corporations Acts of the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 of all proceedings preliminary or relating to any municipal election to be held under the provisions of this Order in the year one thousand nine hundred and twelve of all proceedings preliminary or relating to the ordinary election in the year one thousand nine hundred and twelve of guardians and rural district councillors for any area affected by this Order of the appointment in the month of March one thousand nine hundred and twelve of overseers of the poor for the Parish of Chesterton and of the revision of the basis or standard of the county rate this Order shall operate from the date of the Act of Parliament confirming this Order.

Extension of
Borough.

Art. III.—(1) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered so as to include in addition to that area the added part of the Urban District and so much of the Rural District as comprises the added part of Cherry Hinton the added part of Grantchester and the added part of Trumpington.

(2) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

Deposit of
maps.

Art. IV.—(1) One of the Borough maps and one of the Ward maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the Clerk of the County Council to the Clerk to the Rural Council to the Board of Inland Revenue to the Registrar-General to the Board of Trade and to the Board of Agriculture and Fisheries and copies of the Ward map so deposited and certified in like manner shall be sent within the said period to the Registrar-General and to the Board of Agriculture and Fisheries.

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(2) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the boundaries of the Borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the Borough fund.

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Order.*

Copies of
map to be
evidence.

Art. V. The powers and duties of the quarter sessions recorder clerk of the peace and coroner of the existing Borough of the justices of the peace appointed for the existing Borough of the clerk to those justices and of the police constables and other peace officers of the existing Borough shall extend to and apply throughout the Borough :

Powers and
duties of
justices &c.
extended.

Provided that every person committing an offence in any part of the added areas prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made :

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices or coroner in relation to any matter arising in or concerning any part of the added areas may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

Art. VI.—(1) For the purposes of the parish burgess lists and burgess roll and the other lists to be made under the Municipal Corporations Acts and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have always been part of the Borough.

Parish bur-
gess lists &c.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.

(3) Where any difficulty arising in the year One thousand nine hundred and twelve in giving effect to the provisions of this Order can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers that alteration re-arrangement or action so far as the same may be necessary

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for giving effect to the said provisions shall be made or taken by the town clerk of the existing Borough or the clerk to the County Council as the case may require and the Overseers of the Poor shall render such assistance as may be requisite for the purpose of the said alteration re-arrangement or action by the town clerk or clerk to the County Council as the case may be and that alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the said lists roll and registers.

Number of
 Councillors
 and Alder-
 men.

Art. VII. The number of Councillors of the Borough shall be increased from thirty-six to fifty-one of whom six shall continue as heretofore to be elected to represent the University of Cambridge and the number of Aldermen of the Borough shall be increased from twelve to seventeen of whom two shall continue as heretofore to be elected from among the Councillors elected to represent the University.

Division into
 wards.

Art. VIII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

(1) For the purposes of the election of Councillors other than Councillors representing the University of Cambridge the Borough shall be divided into fifteen wards:

(2) The ten existing wards and the number of Councillors respectively apportioned thereto shall remain unaltered:

Constitution
 and areas of
 new wards.

(3) The added areas shall be formed into five new wards named respectively the North Chesterton Ward comprising that part of the Borough which is coloured yellow on the Ward maps the South Chesterton Ward comprising that part of the Borough which is coloured pink on the Ward maps the East Chesterton Ward comprising that part of the Borough which is coloured blue on the Ward maps the West Chesterton Ward comprising that part of the Borough which is coloured green on the Ward maps and the Cambridge Without Ward comprising that part of the Borough which is coloured brown on the Ward maps:

(4) Three Councillors shall be assigned to each of the Wards constituted by sub-division (3) of this Article.

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Art. IX.—(1) The first election of Councillors for the five new wards constituted by this Order shall be held on the Twenty-first day of March One thousand nine hundred and twelve and the Mayor of the existing Borough shall be the returning officer at the election for those wards Provided that the Mayor of the existing Borough may appoint some other person to act as returning officer at the election for any of the wards.

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—
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Order.*

First election
of Council-
lors for new
wards and of
additional
Aldermen.

(2) The first election of the five additional Aldermen of the Borough shall take place at a meeting of the Council of the Borough to be held on the First day of April One thousand nine hundred and twelve and of the five additional Aldermen then to be chosen one shall be chosen from among the Councillors elected for the North Chesterton Ward one from among the Councillors elected for the South Chesterton Ward one from among the Councillors elected for the East Chesterton Ward one from among the Councillors elected for the West Chesterton Ward and one from among the Councillors elected for the Cambridge Without Ward or in each case from among the persons qualified to be Councillors whose qualifying property is situate in the ward.

Art. X.—(1) The Councillors elected in the month of March One thousand nine hundred and twelve for the five new wards constituted by this Order shall retire as follows:—

Retirement
of Council-
lors for new
wards and of
additional
Aldermen
elected in
1912.

(A) The Councillor for each ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and twelve:

(B) The Councillor for each ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and fourteen:

(C) The other Councillor for each ward on the First day of November One thousand nine hundred and thirteen.

(2) The five additional Aldermen elected for the Borough on the First day of April One thousand nine hundred and twelve in pursuance of this Order shall retire as follows:—

(A) The two Aldermen elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and thirteen:

(B) The other three Aldermen on the Ninth day of November One thousand nine hundred and sixteen.

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the Borough shall on the First day of April One thousand nine hundred and twelve or at the next following quarterly meeting and not later by a majority of votes or

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A.D. 1911. in case of an equality of votes by the casting vote of the chairman
Cambridge determine which of the Councillors or Aldermen as the case may be
Order. shall go out of office on the dates above specified respectively.

Local Acts
and Orders.

Art. XI.—(1) (A) Section 6 of the Cambridge Corporation Act 1850 so far as it incorporates the clauses and provisions of the Commissioners Clauses Act 1847 with respect to mortgages to be executed by the Commissioners and Sections 13 and 22 of the Cambridge Corporation Act 1850 shall be repealed and the provisions contained in the Schedule B. to this Order shall apply to the existing debt:

Provided that this repeal shall not in relation to such mortgages under the said Local Act as are subsisting at the commencement of this Order affect the operation of the incorporated clauses of the Commissioners Clauses Act 1847 with respect to mortgages.

(B) Section 20 of the Cambridge University and Corporation Act 1894 shall be altered by the insertion after the word "baths" in paragraph (F) of the words "including any open bathing place provided before or after the passing of this Act."

(2) Subject to the provisions of this Order the unrepealed provisions of the Local Acts and of the Confirmation Acts specified in the Schedule A. to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in that Schedule and of any other Local Act (including any Local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing Borough or the Corporation as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation thereof.

Byelaws &c.

Art. XII. Subject to the provisions of this Order—

(1) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing Borough shall thenceforth apply to the Borough until or except in so far as any such byelaws regulations list of tolls table of fees and payments or scale of charges may be altered or repealed:

(2) The byelaws in respect of each of the recreation grounds in the Urban District made by the Urban Council and in force immediately before the commencement of this Order shall remain in force and apply in each case to

the recreation ground until altered or repealed and shall have effect as if the same had been made by the Corporation and as if the Corporation were referred to therein instead of the Urban Council :

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Order.*

- (3) All byelaws and regulations other than those referred to in subdivision (2) of this Article made by the Urban Council the Rural Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Council of the District in which the part is situated or have been sent to the surveyor or clerk to that Council one month at least before that date and shall not have been disapproved by that Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Council of the District in which the part is situated and that District. Provided that any proceedings which if this Order had not been made might have been taken by the Urban Council or by the Rural Council for any offence committed before the commencement of this Order against any byelaws and regulations which by virtue of this sub-division cease to be in force may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for that Council.

Art. XIII.—(1) The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Town clerk
and other
officers con-
tinued.

(2) The auditors of the existing Borough who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the borough auditors until the next ordinary day of election of borough auditors.

Borough
auditors.

Art. XIV.—(1) The provisions of subsection (13) of Section 118 and of Section 119 of the Act of 1888 shall apply to all persons who at

Compensa-
tion to exist-
ing officers.

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A.D. 1911. the commencement of this Order hold office as officers or servants of
Cambridge the Urban Council with such modifications as are necessary to make
Order. those provisions applicable to the said officers and servants and to the Corporation.

(2) Every clerk to justices and county coroner and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation and the compensation payable to any person who becomes entitled to compensation in pursuance of subdivision (1) of this Article regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the Borough and in every other case out of the borough fund and borough rate of the Borough and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications. Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

(3) For the purposes of subdivision (2) of this Article any clerk to justices county coroner or officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the Secretary of State or the County Council or the Standing Joint Committee of the County or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

Actions &c.
not to abate. Art. XV.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Urban Council or by or against the Rural Council in relation exclusively to any part of the added areas or in relation exclusively to the excluded part of Chesterton shall not be in anywise prejudicially affected by reason of the making of this

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Order but may in the case of any part of the added areas be continued prosecuted and enforced by or against the Corporation of the Borough and in the case of the excluded part of Chesterton by or against the Rural Council.

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 Order.*

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Urban Council or by the Rural Council or their predecessors in relation exclusively to any part of the added areas or in relation exclusively to the excluded part of Chesterton shall be of as full force and effect against or in favour of the Corporation of the Borough in the case of any part of the added areas or the Rural Council in the case of the excluded part of Chesterton and may be continued and enforced as fully and effectually as if instead of the Urban Council the Rural Council or their predecessors the Corporation or the Rural Council as the case may be had done or suffered the same or been a party thereto.

Saving for
 contracts &c.

Art. XVI. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

Corporation
 property &c.

Art. XVII. The Urban Council shall liquidate as far as practicable before the commencement of this Order all current debts and liabilities incurred by them.

Liquidation of
 current debts
 and liabilities
 by Urban
 Council.

Art. XVIII. Subject to the provisions of this Order and subject as regards the property and liabilities of the Urban Council to any adjustment to be made in respect of the excluded part of Chesterton—

Property &c.
 of Urban and
 Rural Coun-
 cils.

(1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Urban Council and all property and liabilities which immediately before the said date are vested in or attach to the Rural Council in relation exclusively to the added part of Cherry Hinton or the added part of Grantchester or the added part of Trumpington shall by virtue of this Order be transferred to and vest in and attach to the Corporation as Urban District Council and any property and liabilities vested in or attached to the Rural Council in relation to the added part of Cherry

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
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Hinton or the added part of Grantchester or the added part of Trumpington conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888 :

(2) The Urban Council shall at the commencement of this Order be abolished and cease to exist and the Rural Council shall cease to exercise any powers or have any duties within the added part of Cherry Hinton or the added part of Grantchester or the added part of Trumpington:

Arrears of
rates &c.

(3)—(A) All arrears of rates made by the Urban Council and all other payments which at the commencement of this Order are due or owing to the Urban Council may be collected and recovered by the Corporation ;

(B) All arrears of rates made by any Overseers of the Poor for the purposes of the Public Health Acts or for highway expenses or for the purposes of the Lighting and Watching Act 1833 which at the commencement of this Order are due or owing in respect of hereditaments in the added part of Cherry Hinton the added part of Grantchester or the added part of Trumpington may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied or in the case of rates made in the existing Parishes of Cherry Hinton Grantchester and Trumpington for the purposes of the Lighting and Watching Act 1833 towards defraying any expenses incurred by the Parish Councils of those parishes respectively under the last-mentioned Act and the balances (if any) shall be paid to the Corporation :

(4) Any balances in the hands of the Overseers of the Parishes of Chesterton Cherry Hinton Grantchester and Trumpington at the commencement of this Order and any sum collected by the Overseers of the Parishes of Cherry Hinton Grantchester and Trumpington after the commencement of this Order in respect of any rate made before that date and levied upon any rateable hereditament in the added areas shall be a matter for adjustment under Section 62 of the Act of 1888 :

Adaptation
of provisions
as to adjust-
ment.

(5) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect

as if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Local Government Board may sanction :

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- (6) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order so far as it relates to the division of the existing Parishes of Chesterton Cherry Hinton Grantchester and Trumpington and the constitution of the Parish of Cambridge Without that section shall have effect—

(A) As if the Overseers of the Parishes of Cambridge Without Chesterton Cherry Hinton Grantchester Milton and Trumpington were within the meaning of the said section as applied by this Article authorities affected by this Order ; and

(B) As if the poor rate or any other rate leviable in pursuance of the said section as applied by this Article were substituted for any fund mentioned in the section ; and

(c) As if for subsections (6) and (7) of the said section there were substituted the subsections hereunto appended that is to say :—

" (6) If it is necessary for the purpose of giving
" effect to any agreement or award for an adjust-
" ment that a separate rate shall be levied in part
" of a parish only the agreement or award may
" authorise the making of such a separate rate as if
" it were a poor rate and as if the part of the parish
" on which it is to be levied were a whole parish."

" (7) Any sum paid for the purposes of any
" adjustment or in pursuance of any order or award

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" of an arbitrator shall be applied by such person
" in such manner and for such purpose as the Local
" Government Board may authorise or direct " :

Audit of
accounts of
Urban Coun-
cil.

(7) The accounts of the Urban Council and of the committees and officers of that Council shall be made up to the commencement of this Order and shall be audited by the District Auditor in like manner and subject to the like incidents and consequences as if this Order had not been made :

Provided that the audit may be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding :

Provided also that any sum certified by the District Auditor to be due from any person shall be paid to the treasurer of the Borough and shall form a matter for adjustment under Section 62 of the Act of 1888.

Mortgage
debts of
Urban Coun-
cil and Cor-
poration.

Art. XIX. Subject to the provisions of any adjustment under Section 62 of the Act of 1888 and of this Order—

(1) The liability for repayment of any moneys borrowed by the Urban Council or of so much of any of those moneys as will be owing at the commencement of this Order and for the payment of the interest thereon shall by virtue of this Order be transferred and attach to the Corporation :

(2) So much as will at the commencement of this Order be outstanding in respect of the moneys borrowed as aforesaid by the Urban Council together with so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the district fund and general district rate of the existing Borough shall by virtue of this Order be charged upon the district fund and general district rate of the Borough and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing Borough shall by virtue of this Order be charged upon the borough fund and borough rate of the Borough :

(3) All borrowed moneys to which this Article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which

the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable :

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Order.*

- (4) Nothing in this Order shall prejudice or affect any mortgage or other security which has been granted in respect of any sum borrowed as aforesaid or the powers of any person entitled under any such mortgage or other security to enforce the same as if this Order had not been made and where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Order the power may continue to be exercised as if this Order had not been made and the general district rate of the Borough or the Borough rate of the Borough as the case may be shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable if this Order had not been made.

Art. XX. The provisions of the Baths and Washhouses Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 the Public Libraries Acts 1892 to 1901 and the Notification of Births Act 1907 shall be in force in and apply to the Borough as if the same had been adopted therein.

Adoptive
Acts.

Art. XXI. Subject to the provisions of any Order which the Local Government Board or a Secretary of State may hereafter make—

Powers under
Section 33 of
Act of 1894.

- (1) The provisions of any Order heretofore made by the Local Government Board and conferring upon the Council of the existing Borough any of the matters mentioned in Section 33 of the Act of 1894 and in that Order as altered by the Borough of Cambridge Confirmation Order 1900 shall be deemed to have effect as if any reference therein to the Parish of Cambridge extended and applied to the Parish of Cambridge Without :
- (2) Any powers duties or liabilities vested in or attaching to the Urban Council in pursuance of any Order made by the Local Government Board under Section 33 or Section 34 of the Act of 1894 shall by virtue of this Order vest in and attach to the Corporation in respect of the Parish of Chesterton in like manner and with the like effect in all respects as if the Corporation had been referred to in the Order instead of the Urban Council :
- (3) The provisions of any Order made by the Local Government Board or by the Secretary of State and declaring to be in

Powers under
Public
Health Acts

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

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Order.*

Amendment
Act 1907.
7 Edw. 7.
c. 53.

force in the existing Borough any Parts or Sections of the Public Health Acts Amendment Act 1907 shall have and shall be deemed always to have had effect as if any reference in those provisions to the existing Borough extended and applied to the Borough and as if the said Parts and Sections were accordingly declared to be in force in the Borough.

Transfer of
public ele-
mentary
schools &c. to
Corporation.

Art. XXII. For the purposes and subject to the provisions of the Education Acts 1870 to 1910—

- (1) All public elementary schools (including the sites and school-houses) provided by the local education authority and any other land acquired and held by the local education authority for purposes of elementary education and situate within any part of the added areas with the furniture and fittings of the schoolhouses shall by virtue of this Order be transferred to and vested in the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority and all contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of the said public elementary schools land furniture or fittings or of any other public elementary school situate in any part of the added areas or with respect to the officers teachers and servants of any of the said public elementary schools shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority :

Provided that Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this subdivision :

Mortgage
debts in
respect of
transferred
schools.

- (2) The liability for repayment of so much of any loan raised exclusively in respect of any public elementary school (including the site and schoolhouse) and of any other land furniture or fittings transferred to and vested in the Corporation by virtue of this Order as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order shall be charged on the borough fund and the borough rate of the Borough and shall be repaid by the

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

Corporation within the period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable : A.D. 1911.
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Order.

(3) Any byelaws in force in the existing Borough immediately before the commencement of this Order shall from and after that date apply to the Borough until revoked or altered and from and after that date any byelaws then in force in any part of the added areas shall cease to be in force : Education
byelaws.

(4) Any managers of public elementary schools in the added areas who were appointed by the County Council or by the Council of the district or Parish Council of the parish in which the school is situated shall vacate office at the commencement of this Order. Managers.

Art. XXIII.—(1) At the commencement of this Order such members if any of the police force of the County as shall be determined by agreement to be made as soon as practicable after the date of the Act of Parliament confirming this Order between the Standing Joint Committee of the County and the Watch Committee of the existing Borough or in default of any such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the Borough and any member of the county police force so transferred shall hold office upon the same tenure and upon the same terms and conditions as if this Order had not been made and while he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he is entitled shall not be less than they would have been if this Order had not been made. County
police.

(2) The provisions of Section 15 (2) of the Police Act 1890 as amended by the Police (Superannuation) Act 1906 shall extend and apply to and in relation to any member of the police force of the County transferred under the powers of this Article as if that member had removed with the written sanction of the Chief Constable of the County. 53 & 54 Vict.
c. 45.
6 Edw. 7.
c. 7.

Art. XXIV.—(1) (A) The added part of Cherry Hinton the added part of Grantchester and the added part of Trumpington shall be respectively separated from the parishes of which they now form part and shall be amalgamated and formed into a separate parish for all lay and civil purposes to be called the Parish of Cambridge Without. Alteration of
parishes.

(B) The Parish of Cambridge Without shall be included in and form part of the Chesterton Union and all Orders in force immediately

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911. before the commencement of this Order and applicable to the several
Cambridge parishes therein shall apply to the Parish of Cambridge Without.
Order.

(2) The excluded part of Chesterton shall be added to the existing Parish of Milton and to the Rural District.

Appointment
of Overseers
for Cam-
bridge With-
out.

(3) Overseers of the Poor for the Parish of Cambridge Without shall be appointed by the Corporation as soon as practicable after the commencement of this Order but until such appointments are made the Overseers of the Poor of the existing Parishes of Cherry Hinton, Grantchester and Trumpington shall act as Overseers for the Parish of Cambridge Without.

Adoptive
Acts byelaws
&c. of Rural
Council made
applicable
to extended
Parish.

Art. XXV.—(1) The provisions of the Infectious Disease (Prevention) Act 1890 and such of the provisions of the Public Health Acts Amendment Act 1890 as are in force in the Rural District shall be in force in and apply to that District as altered by this Order.

(2) Such of the provisions of the Public Health Acts Amendment Act 1890 as are in force in the excluded part of the Urban District and are not in force in the Rural District shall cease to be in force in the excluded part of the Urban District:

Provided that nothing in this subdivision shall—

(A) affect the operation prior to the commencement of this Order of any such provisions or anything duly done or suffered thereunder; or

(B) affect any right privilege obligation or liability acquired accrued or incurred under any such provisions; or

(C) affect any penalty forfeiture or punishment incurred in respect of any offence committed against any such provisions; or

(D) affect any investigation legal proceeding or remedy in respect of any such right privilege obligation liability penalty forfeiture or punishment aforesaid.

(3) Subject to the provisions of any order which the Local Government Board or a Secretary of State may hereafter make the provisions of any order made by the Local Government Board or by the Secretary of State and declaring to be in force in the contributory place of Milton any Parts or Sections of the Public Health Acts Amendment Act 1907 shall have and shall be deemed always to have had effect as if any reference in those provisions to the contributory place of Milton extended and applied to the said contributory place as extended by this Order and as if the said Parts and Sections were accordingly declared to be in force in the contributory place as so extended.

(4) Any byelaws and regulations in force immediately before the commencement of this Order within the Rural District and the existing Parish of Milton shall until they are repealed altered or revoked extend to and be in force within the Parish of Milton and from and after the said date any byelaws or regulations of the Urban Council shall cease to apply or be of effect in the excluded part of the Urban District.

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Order.

Art. XXVI. Subject to the provisions of Section 60 of the Act of 1894 and as regards any alteration of the wards hereby constituted to the provisions of that Act as to the alteration of wards for the election of guardians the following provisions shall have effect:—

Rural Dis-
trict Coun-
cillors and
guardians.

(1)—(A) The Parish of Chesterton shall for the purposes of the election of guardians be divided into four wards which shall be respectively co-terminous in area with and shall bear the same names as the wards into which that part of the Borough which by virtue of this Order consists of the Parish of Chesterton is divided for the purposes of the election of Councillors;

(B) Two guardians shall be assigned to each of the wards of the Parish of Chesterton;

(C) The persons who at the commencement of this Order hold the office of Guardian of the Poor for the North Ward the South Ward the East Ward and the West Ward of the existing Parish of Chesterton shall be deemed to have been elected and shall represent the North Chesterton Ward the South Chesterton Ward the East Chesterton Ward and the West Chesterton Ward respectively of the Parish of Chesterton upon the Board of Guardians of the Chesterton Union until the date on which they would have retired if this Order had not been made:

(2)—(A) Four guardians shall be assigned to the Parish of Cambridge Without the number of Rural District Councillors and Guardians for the Parish of Cherry Hinton shall be reduced to two and the number of Rural District Councillors and Guardians for the Parish of Grantchester and Trumpington shall in each case be reduced to one;

(B) The following persons shall cease to hold the office of Rural District Councillor but shall continue to act as members of the Board of Guardians of the Chesterton Union and shall be deemed to have been elected as the guardians for the Parish of Cambridge Without and shall represent

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
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that parish upon the said Board of Guardians until the date in each case upon which they would have retired if this Order had not been made:—

(a) The two persons who at the commencement of this Order are holding the offices of Rural District Councillor and Guardian of the Poor for the St. John's Ward of the existing Parish of Cherry Hinton;

(b) One person to be chosen by the Rural Council by ballot at their meeting held next before the said date from the two persons holding office for the existing Parish of Grantchester;

(c) One person to be chosen as in the last preceding paragraph from the two persons holding office for the existing Parish of Trumpington;

(c) The two persons who at the commencement of this Order are holding the offices of Rural District Councillor and Guardian of the Poor for the Saint Andrew's Ward of the existing Parish of Cherry Hinton the other persons who at the said date are holding those offices for the existing Parish of Grantchester and the existing Parish of Trumpington and the person who at the said date is holding those offices for the existing Parish of Milton shall respectively be deemed to have been elected for and shall represent the Parish of Cherry Hinton the Parish of Grantchester the Parish of Trumpington and the Parish of Milton until the date in each case on which they would have retired if this Order had not been made.

Parish
Councils.

Art. XXVII.—(1) Subject to the provisions of this Order any powers and duties transferred by the Act of 1894 to the Parish Council of the existing Parishes of Cherry Hinton Grantchester or Trumpington shall so far as regards the added part of Cherry Hinton the added part of Grantchester or the added part of Trumpington be vested in exerciseable by and imposed on the persons and authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the added part in each case had been included in a parish in the existing Borough on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred so far as regards the added part in each case for the purpose or by virtue of the said powers and duties shall by virtue of this Order be transferred to and vest in and attach to the persons and authorities aforesaid Any property or liabilities of the said Parish Councils held or incurred otherwise

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

than by virtue or for the purposes of the powers or duties aforesaid shall so far as regards the added part of Cherry Hinton or the added part of Grantchester or the added part of Trumpington by virtue of this Order be transferred to and vest in and attach to the Corporation.

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Order.*

(2)—(A) The wards of the existing Parish of Cherry Hinton shall be abolished and the Parish Councillors representing the St. Andrew's Ward of that Parish shall be deemed to have been elected and shall be the Parish Council for the Parish of Cherry Hinton.

(B) The Parish Council of the existing Parish of Grantchester of the existing Parish of Trumpington and of the existing Parish of Milton shall in each case be deemed to have been elected and shall be the Parish Council for the Parish of Grantchester the Parish of Trumpington or the Parish of Milton as the case may be.

Art. XXVIII. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of any existing parish affected by this Order.

Ecclesiastical
divisions and
charities.

Art. XXIX. Until new valuation lists are in force—

Valuation
lists.

(1)—(A) The portions of the valuation lists of the existing Parishes of Cherry Hinton Grantchester and Trumpington which respectively relate to hereditaments in the added part of Cherry Hinton the added part of Grantchester and the added part of Trumpington shall together be deemed to form the valuation list of the Parish of Cambridge Without ;

(B) The remaining portions of the valuation lists of the existing Parishes of Cherry Hinton Grantchester and Trumpington shall respectively be deemed to be the valuation lists of the Parishes of Cherry Hinton Grantchester and Trumpington :

(2)—(A) The portion of the valuation list of the existing Parish of Chesterton which relates to hereditaments in the excluded part of Chesterton shall be deemed to form part of the valuation list of the Parish of Milton ;

(B) The remaining portion of the valuation list of the existing Parish of Chesterton shall be deemed to be the valuation list of the Parish of Chesterton.

Art. XXX.—(1) Subject to any future revision the basis or standard of the county rate for the County shall be deemed to be altered—

County rate
basis.

(A) by the deduction from the amount appearing therein as the total annual value of the property in the existing Parishes

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
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of Cherry Hinton Grantchester and Trumpington of such a sum in each case as will represent the annual value of the property in the part of the parish which is included by this Order in the Parish of Cambridge Without;

(b) by the insertion therein of a reference to the total annual value of the property in the Parish of Cambridge Without and the said total annual value shall be the aggregate of the sums deducted in pursuance of the foregoing paragraph of this subdivision; and

(c) by the deduction from the amount appearing therein as the total annual value of the property in the existing Parish of Chesterton of such a sum as will represent the annual value of the property in the part of the parish which is included by this Order in the Parish of Milton and by the addition of that sum to the amount appearing therein as the total annual value of the property in the existing Parish of Milton.

(2) For the purposes of this Article the annual value of the property in the part of a parish which is included by this Order in the Parish of Cambridge Without or the Parish of Milton shall be the amount which bears the same relation to the total annual value of the existing parish as the assessable value of the property in the included part of the existing parish bears to the total assessable value of property in the existing parish and the total annual value of the existing parish shall be the amount appearing as such in the basis or standard of the county rate.

(3) For the purposes of this Article assessable value means one-half of the rateable value according to the valuation list for the time being in force of the agricultural land together with the rateable value according to that list of the buildings and other hereditaments not being agricultural land in the existing parish or in the part included in the Parish of Cambridge Without or in the Parish of Milton as the case may require.

Saving for
 existing lists
 of parliamen-
 tary voters
 &c.

Art. XXXI. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the registers of parochial electors and of jury lists the parishes affected by this Order shall be deemed to continue unaltered until the new registers and lists come into operation:

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order and of the holding of any Parish Meeting the town clerk or the clerk of the County Council as the case may require shall if and when necessary cause the

register of parochial electors to be altered in such manner as may be requisite to give effect to the provisions of this Order. A.D. 1911:

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Order.*

Art. XXXII. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect that is to say:— Settlement
and removal
of the poor.

(1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in any of the existing Parishes of Chesterton Cherry Hinton Grantchester Trumpington or Milton by reason of any residence completed or in the course of completion or of any act or thing done or in the course of being done or of any status condition right or privilege acquired or created or in the course of acquisition or creation—

(i) in the added part of Chesterton; or

(ii) in the excluded part of Chesterton; or

(iii) in the part of any of the existing Parishes of Cherry Hinton Grantchester or Trumpington included by this Order in the Parish of Cambridge Without; or

(iv) in the existing Parish of Milton; or

(v) in that part of the existing Parish of Cherry Hinton which by virtue of this Order will form the Parish of Cherry Hinton; or

(vi) in that part of the existing Parish of Grantchester which by virtue of this Order will form the Parish of Grantchester; or

(vii) in that part of the existing Parish of Trumpington which by virtue of this Order will form the Parish of Trumpington;

shall be deemed to have acquired or to be in the course of acquiring in the first case a settlement in the Parish of Chesterton in the second and fourth cases a settlement in the Parish of Milton in the third case a settlement in the Parish of Cambridge Without in the fifth case a settlement in the Parish of Cherry Hinton in the sixth case a settlement in the Parish of Grantchester and in the seventh case a settlement in the Parish of Trumpington and in each case as if the existing parish or the specified part of the existing parish were and had always been the parish or a part of the parish in which by virtue of this Article the person shall be deemed to have acquired or to be in the course of acquiring a settlement:

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
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Order.

(2) Every person who at the commencement of this Order has acquired or is in the course of acquiring a status of irremovability from the Chesterton Union by reason of residence—

(i) in the added part of Chesterton; or

(ii) in the excluded part of Chesterton; or

(iii) in the part of any of the existing Parishes of Cherry Hinton Grantchester or Trumpington included by this Order in the Parish of Cambridge Without; or

(iv) in the existing Parish of Milton; or

(v) in that part of the existing Parish of Cherry Hinton which by virtue of this Order will form the Parish of Cherry Hinton; or

(vi) in that part of the existing Parish of Grantchester which by virtue of this Order will form the Parish of Grantchester; or

(vii) in that part of the existing Parish of Trumpington which by virtue of this Order will form the Parish of Trumpington;

shall be deemed to have acquired or to be in the course of acquiring the like status by reason of residence in the first case in the Parish of Chesterton in the second and fourth cases in the Parish of Milton in the third case in the Parish of Cambridge Without in the fifth case in the Parish of Cherry Hinton in the sixth case in the Parish of Grantchester and in the seventh case in the Parish of Trumpington.

Saving for
contribution
orders and
precepts.

Art. XXXIII. Notwithstanding the alteration in the areas of parishes effected by this Order all contribution orders made by the Guardians of the Poor of the Chesterton Union and all precepts made by the Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made.

Arrears of
rates.

Art. XXXIV. All arrears of rates made by the Overseers of the Poor and due or owing at the commencement of this Order in respect of hereditaments in any area affected by this Order shall be collected and recovered by the Overseers of the Poor of the Parish in which the hereditament is now situated as if this Order had not been made.

Construction
of additional
bridge over
River Cam.

Art. XXXV. The Corporation shall within a period of five years from the commencement of this Order construct and open for traffic a bridge (other than the existing Victoria Bridge) suitable for vehicular traffic across that part of the River Cam which forms the common

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

boundary of the existing Parish of Chesterton and the existing Borough to provide improved means of communication between the Parish of Chesterton and the remainder of the Borough together with all necessary approaches and shall with all reasonable diligence take the requisite steps to obtain such statutory or other powers as may be necessary for the purpose. A.D. 1911.
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Order.

Art. XXXVI. For the purpose of defraying the costs of obtaining this Order and any expenses under this Order which in the opinion of the Local Government Board are properly chargeable to capital the Corporation may borrow according and subject to the provisions and restrictions of the Public Health Act 1875 and may mortgage the borough fund and borough rate or the district fund and general district rate of the Borough for the purpose of securing the repayment of any moneys so borrowed and the interest thereon Provided that all such moneys shall be repaid within such period not exceeding thirty years from the date of borrowing the same as the Corporation with the sanction of the Local Government Board determine. Borrowing
powers for
purposes of
Order.

Art. XXXVII. Nothing in this Order contained shall affect the exclusive rights and privileges of civil and criminal judicature and trial in the courts of the University of Cambridge as the same may have been granted by the charters of the University and confirmed by divers Acts of Parliament to the University and to all persons matriculated therein or being members thereof nor any other of the respective rights privileges and franchises of the University and their successors and the several bodies politic corporate collegiate or sole of the University and their successors except so far as the same are hereby expressly altered. Saving for
rights and
privileges of
University of
Cambridge.

Art. XXXVIII. This Order may be cited as the Cambridge Short title.
(Extension) Order 1911.

The SCHEDULES above referred to.

SCHEDULE A.

PART I.—LOCAL ACTS.

Session and Chapter.	Title or Short Title.
13 & 14 Vict. c. xxxvii.	The Cambridge Corporation Act 1850.
19 Vict. c. xvii.	The Cambridge Award Act 1856.
52 & 53 Vict. c. lxvi.	The River Cam Bridges Act 1889.
57 & 58 Vict. c. lx.	The Cambridge University and Corporation Act 1894.

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911.

PART II.—CONFIRMATION ACTS.

*Cambridge
Order.*

Session and Chapter.	Short Title.	Order thereby confirmed.
52 & 53 Vict. c. cxvi.	The Local Government Board's Provisional Orders Confirmation (No. 15) Act 1889.	The Borough of Cambridge Order 1889.

SCHEDULE B.

REPAYMENT OF THE EXISTING DEBT UNDER THE CAMBRIDGE CORPORATION ACT 1850.

Local Loans Act and certain provisions of Public Health Act made applicable.

I. For the purpose of raising money in the exercise of the powers of borrowing conferred by paragraph V. of this Schedule the provisions of the Local Loans Act 1875 shall be available to the Corporation and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Schedule.

Period for repayment of existing debt.

II. The existing debt shall be repaid within forty years from the Thirty-first day of March One thousand nine hundred and eleven and that period is herein-after referred to as "the prescribed period" and shall with reference to the repayment of the existing debt be the prescribed period for the purposes of this Schedule and of the Local Loans Act 1875.

Mode of repayment.

III.—(1) The Corporation shall repay the existing debt (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Formation maintenance and application of sinking fund.

(2) Subject to the provisions of paragraph IV. of this Schedule if the Corporation determine to repay by means of a sinking fund any part of the existing debt the sinking fund shall be formed and maintained either—

(A) by payment to the fund throughout the prescribed period of such equal annual sums as will with the sum carried to the sinking fund in pursuance of subdivision (7) of this paragraph together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(B) by payment to the fund throughout the prescribed period of such equal annual sums as with the sum carried to the sinking fund in pursuance of subdivision (7) of this paragraph and with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

A.D. 1911.
*Cambridge
Order.*

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the existing debt be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Corporation and the Corporation shall be at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(5) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the existing debt. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) The Corporation shall as soon as practicable after the commencement of the Cambridge (Extension) Order 1911 apply any sum

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911. which may be standing to the credit of the sinking fund established
Cambridge for the repayment of the existing debt in payment of the existing debt
Order. or if a sinking fund has been established under the provisions of this
Schedule for the repayment of the existing debt shall transfer or pay
the sum to that sinking fund.

(8) Any expenses connected with the formation maintenance invest-
ment application or management of or otherwise in relation to any
sinking fund under this Schedule shall be paid by the Corporation in
addition to the payments provided for by this Schedule.

Increase re-
duction or
discontinu-
ance of pay-
ments to
sinking fund.

IV.—(1) If it appears to the Corporation at any time that the
amount in the sinking fund with the future payments thereto in
accordance with the provisions of this Schedule together with the
accumulations thereon (in the case of an accumulating sinking fund)
will probably not be sufficient to repay within the prescribed period
the moneys for the repayment of which the sinking fund is formed it
shall be the duty of the Corporation to make such increased payments
to the sinking fund as will cause the sinking fund to be sufficient for
that purpose. Provided that if it appears to the Local Government
Board that any such increase is necessary the Corporation shall increase
the payments to such extent as the Board may direct.

(2) If the Corporation desire to accelerate the repayment of any
part of the existing debt they may increase the amounts payable to any
sinking fund.

(3) If in the opinion of the Local Government Board the amount
in the sinking fund with the future payments thereto in accordance
with the provisions of this Schedule together with the accumulations
thereon (in the case of an accumulating sinking fund) will probably
be more than sufficient to repay within the prescribed period the
moneys for the repayment of which the sinking fund is formed the
Corporation may reduce the payments to be made to the sinking fund
either temporarily or permanently to such an extent as the Board
approve.

(4) If in the opinion of the Local Government Board the amount
in any sinking fund at any time together with the accumulations
thereon (in the case of an accumulating sinking fund) will probably
be sufficient to repay the loan in respect of which it is formed within
the prescribed period the Corporation may with the consent of the
Board discontinue the equal annual payments to the sinking fund until
the Board otherwise direct.

Surplus of
sinking fund.

(5) Any surplus of any sinking fund remaining after the discharge
of the whole of the moneys for the repayment of which it was formed
shall be applied to such purpose or purposes as the Corporation with
the consent of the Local Government Board may determine.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

V.—(1) The Corporation shall have power—

(A) to borrow for the purpose of paying off any part of the existing debt which is intended to be forthwith repaid;
or

(B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying any part of the existing debt and which at the time of such repayment it was intended to replace by borrowed moneys.

A.D. 1911.

Cambridge
Order.

Power to
re-borrow.

(2) Any moneys borrowed under this paragraph shall for the purposes of repayment be deemed to form part of the existing debt and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the existing debt shall apply to the moneys borrowed under this paragraph.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) by instalments or annual payments; or

(B) by means of a sinking fund; or

(C) out of moneys derived from the sale of land; or

(D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

VI.—(1) Subject to the provisions of this paragraph any mortgagee of the Corporation in respect of a mortgage under this Schedule may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

VII.—(1) The town clerk shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated

Receiver.
Return as to
provision for
repayment of
existing debt.

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911. *Cambridge Order.* For to be paid to a sinking fund in pursuance of the provisions of this Schedule or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the town clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purposes of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by this Schedule or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Given under the Seal of Office of the Local Government Board
this Twenty-fifth day of May One thousand nine hundred and
eleven.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

BOROUGH OF SOUTHPORT.

A.D. 1911.

*Provisional Order made in pursuance of Sections 54 and 59 of
the Local Government Act 1888.*

*Southport
Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Southport ; —

To the Justices of the Peace for the said Borough ; —

To the Justices of the Peace for the County Palatine of Lancaster
in Quarter Sessions assembled ; —

To the County Council of the County Palatine of Lancaster ; —

To the Urban District Council of Birkdale ; —

To the Southport Birkdale and West Lancashire Water Board ; —

To the Guardians of the Poor of the Ormskirk Union ; —

To the Overseers of the Poor of the Townships of Ainsdale Birk-
dale and Southport ; —

And to all others whom it may concern.

WHEREAS by Section 54 of the Local Government Act 1888 the Local Government Board are empowered to make a Provisional Order for altering the boundary of any Borough ;

51 & 52 Vict.
c. 41.

And whereas the Borough of Southport is a County Borough within the meaning of the Local Government Act 1888 and is for the purposes of that Act situate in the County Palatine of Lancaster and the inhabitants are a body corporate by the name of the Mayor Aldermen and Burgesses of the Borough of Southport and act by the Council of the said Borough which now consists of the Mayor (who is also an Alderman) nine other Aldermen and thirty Councillors and the said Borough is for the purposes of the election of Councillors divided into ten wards ;

And whereas the said Borough is co-extensive with the Township of Southport and is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the Council are the Urban Sanitary Authority ;

And whereas the said Borough has a separate commission of the peace and police force ;

And whereas in pursuance of the Education Act 1902 the Council of the said Borough are the local education authority ;

2 Edw. 7.
c. 42.

And whereas the unrepealed provisions of the Local Acts specified in Part I. of the Schedule A to this Order and of the Confirmation Acts specified in Part II. of the said schedule so far as the last-mentioned

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911. Acts relate to the Orders specified in that schedule are in force in the said Borough;

Southport Order.

And whereas the Urban Sanitary Authority for the said Borough have adopted the provisions of—

53 & 54 Vict.
c. 34.

(A) The Infectious Disease (Prevention) Act 1890;

53 & 54 Vict.
c. 59.

(B) The Public Health Acts Amendment Act 1890; and

7 Edw. 7.
c. 40.

(C) The Notification of Births Act 1907;

and those provisions are accordingly in force in the said Borough;

9 & 10 Vict. c. 74.
10 & 11 Vict. c. 61.
41 & 42 Vict. c. 14.
45 & 46 Vict. c. 30.
59 & 60 Vict. c. 59.
62 & 63 Vict. c. 29.
55 & 56 Vict. c. 53.
56 Vict. c. 11.
1 Edw. 7. c. 19.

And whereas the Baths and Washhouses Acts 1846 to 1899 and the Public Libraries Acts 1892 to 1901 are in force in the said Borough;

15 & 16 Vict. c. 85.
6 Edw. 7. c. 44.

And whereas the Council of the said Borough are the authority for the execution of the Burial Acts 1852 to 1906 within the Borough;

And whereas the Urban District of Birkdale in the County Palatine of Lancaster immediately adjoins the said Borough and comprises the Township of Ainsdale and the Township of Birkdale and is subject to the jurisdiction of the Urban District Council of Birkdale and the said Urban District is for the purpose of the election of Urban District Councillors divided into five wards termed respectively the North Ward the South Ward the East Ward the West Ward and the Ainsdale Ward;

And whereas the unrepealed provisions of the Local Act specified in Part I. of the Schedule B to this Order and of the Confirmation Acts specified in Part II. of that schedule so far as the last-mentioned Acts relate to the Orders specified in that schedule are in force in the Urban District of Birkdale;

55 & 56 Vict.
c. xciv.

And whereas by virtue of Section 14 of the Southport and Cheshire Lines Extension Railway Act 1892 the Urban District Council of Birkdale as the successors of the Birkdale Local Board are invested with certain powers and rights with respect to the recreation grounds therein referred to;

And whereas the Urban District Council of Birkdale have adopted the provisions of—

(A) The Infectious Disease (Prevention) Act 1890; and

(B) The Public Health Acts Amendment Act 1890;

and those provisions are accordingly in force in the Urban District of Birkdale;

And whereas the Public Libraries Acts 1892 to 1901 are in force in the Urban District of Birkdale;

A.D. 1911.

And whereas the Urban District Council of Birkdale in pursuance of the Public Health (Interments) Act 1879 have provided a cemetery for their District ;

*Southport
Order.*
42 & 43 Vict.
c. 31.

And whereas the Townships of Ainsdale Birkdale and Southport are included in the Ormskirk Union and one guardian is elected for the Township of Ainsdale and the Township of Birkdale is for the purpose of the election of guardians divided into four wards which are respectively co-extensive with and bear the same names as the wards into which the area of that Township is divided for the purpose of the election of urban district councillors and two guardians are elected for the South Ward two guardians are elected for the East Ward and one guardian is elected for each of the remaining wards and the Township of Southport is for the purpose of the election of guardians divided into ten wards which are respectively co-extensive with and bear the same names as the municipal wards of the said Borough and two guardians are elected for each of those wards ;

And whereas in pursuance of the Education Act 1902 the said Townships of Ainsdale and Birkdale form part of the area of the County Council of the County Palatine of Lancaster as the local education authority ;

2 Edw. 7.
c. 42.

And whereas the Urban District of Birkdale is included in the Birkdale Electoral Division of the County Palatine of Lancaster ;

And whereas in pursuance of the Southport Water (Transfer) Act 1901 a joint board consisting of members appointed by the Corporation of the said Borough the Urban District Council of Birkdale and the Rural District Council of West Lancashire and named the Southport Birkdale and West Lancashire Water Board was constituted for the purpose of carrying that Act into execution and by Section 34 of the Southport Birkdale and West Lancashire Water Board Act 1905 it was provided that if at any time after the Thirty-first day of May One thousand nine hundred and five any part of the Rural District of West Lancashire became an urban district then the council of such urban district should from and after a certain date become a constituent and contributing authority of the Water Board ;

1 Edw. 7.
c. cexlviii.

5 Edw. 7.
c. clxxxii.

And whereas by the Formby Urban District Council Act 1905 the Township of Formby in the Rural District of West Lancashire was constituted an urban district subsequently to the Thirty-first day of May One thousand nine hundred and five by the name of the Formby Urban District :

5 Edw. 7.
c. cli.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby

51 & 52 Vict
c. 41.

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911. order that from and after the date of the Act of Parliament confirming
 Southport this Order the following provisions shall take effect:—
 Order.

Definitions. Art. I. In this Order—

- (1) The expression "the commencement of this Order" means the First day of April One thousand nine hundred and twelve;
- (2) The expression "the existing Borough" means the Borough of Southport as it existed immediately prior to the commencement of this Order;
- (3) The expression "the Borough" means the existing Borough as extended by this Order;
- (4) The expression "the Corporation" means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or of the Borough acting by the Council;
- (5) The expressions "the County" and "the County Council" mean respectively the County Palatine of Lancaster and the County Council of that County;
- (6) The expressions "the Urban District" and "the Urban Council" mean respectively the Urban District of Birkdale and the Urban District Council of that District;
- (7) The expression "the Borough maps" means the two maps each marked "Map of the Borough of Southport as extended 1911" and sealed with the official seal of the Local Government Board;
- (8) The expression "the Ward maps" means the two maps each marked "Map of the Wards of the Borough of Southport as constituted by the Southport (Extension) Order 1911" and sealed with the official seal of the Local Government Board;
- (9) The expression "the foreshores" means and includes (1) the area between the boundary of the existing Borough and low-water mark of ordinary tides which is coloured green on the Borough maps and (2) the area between the boundary of the Urban District and low-water mark of ordinary tides which is coloured brown on the Borough maps;
- (10) The expression "the added areas" means the Urban District the area of which is coloured blue on the Borough maps and the foreshores;

[1° & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

- (11) The expression "the existing Township of Southport" means the Township as it existed immediately prior to the commencement of this Order and the expression "the Township of Southport" means the Township as extended by this Order; A.D. 1911.
Southport
Order.
- (12) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;
- (13) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;
- (14) The expression "the Burial Acts" means the Burial Acts 1852 to 1906.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the First day of April One thousand nine hundred and twelve : Commence-
ment of
Order.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the Borough under the Municipal Corporations Acts of the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 of all proceedings preliminary or relating to any municipal election to be held under the provisions of this Order in the year One thousand nine hundred and twelve of the appointment in the month of March One thousand nine hundred and twelve of overseers of the poor for the Township of Southport and for the Township of Ainsdale and of the revision of the basis or standard of the county rate of the County this Order shall operate from the date of the Act of Parliament confirming this Order. Date of
operation of
Order for
parish bur-
gess lists &c.
51 Vict. c. 10.

Art. III.—(1) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered so as to include in addition to that area the Urban District and the foreshores. Extension of
Borough.

(2) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough and shall be the County Borough for the purposes of the Act of 1888.

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911.

*Southport
Order.*

Deposit of
maps.

Art. IV.—(1) One of the Borough maps and one of the Ward maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order. Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the Board of Inland Revenue to the Registrar-General to the Postmaster-General to the Board of Trade and to the Board of Agriculture and Fisheries and copies of the Ward map so deposited and certified in like manner shall be sent within the said period to the Registrar-General and to the Board of Agriculture and Fisheries.

Copies of
map to be
evidence.

(2) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the boundaries of the Borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the Borough fund.

Powers and
duties of
justices &c.
extended.

Art. V. The powers and duties of the justices of the peace appointed for the existing Borough of the clerk to those justices and of the police constables and other peace officers of the existing Borough shall extend to and apply throughout the Borough:

Provided that every person committing an offence in any part of the added areas prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made:

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices in relation to any matter arising in or concerning any part of the added areas may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

Parish bur-
gess lists &c.

Art. VI.—(1) For the purposes of the parish burgess lists and burgess roll and the other lists to be made under the Municipal Corporations Acts and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have always been part of the Borough.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.

A.D. 1911.

*Southport
Order.*

(3) Where any difficulty arising in the year One thousand nine hundred and twelve in giving effect to the provisions of this Order can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers that alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk of the existing Borough or the clerk of the County Council as the case may require and the Overseers of the Poor shall render such assistance as may be requisite for the purpose of the said alteration re-arrangement or action by the town clerk or clerk of the County Council as the case may be and that alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the said lists roll and registers.

Art. VII. The number of Councillors of the Borough shall be increased from thirty to forty-five and the number of Aldermen of the Borough shall be increased from ten to fifteen.

Number of
Councillors
and Alder-
men.

Art. VIII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

Division into
wards.

(1) For the purposes of the election of Councillors the Borough shall be divided into fifteen wards:

(2) The ten existing wards and the number of Councillors respectively apportioned thereto shall remain unaltered:

(3) The added areas shall be formed into five new wards named respectively the Birkdale North Ward comprising that part of the Borough which is coloured blue on the Ward maps the Birkdale South Ward comprising that part of the Borough which is coloured pink on the Ward maps the Birkdale East Ward comprising that part of the Borough which is coloured yellow on the Ward maps the Birkdale West Ward comprising those parts of the Borough which are

Constitution
and areas of
new wards.

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911.

*Southport
Order.*

coloured brown on the Ward maps and the Ainsdale Ward comprising that part of the Borough which is coloured purple on the Ward maps:

(4) Three Councillors shall be assigned to each of the Wards constituted by subdivision (3) of this Article.

First election
of Council-
lors for new
wards and of
additional
Aldermen.

Art. IX.—(1) The first election of Councillors for the five new Wards constituted by this Order shall be held on the Twenty-second day of March One thousand nine hundred and twelve and the Mayor of the existing Borough shall be the returning officer at the election for those wards Provided that the Mayor of the existing Borough may appoint some other person to act as returning officer at the election for any of the wards.

(2) The first election of the five additional Aldermen of the Borough shall take place on the First day of April one thousand nine hundred and twelve and of the five additional Aldermen then to be chosen one shall be chosen from among the Councillors elected for the Birkdale North Ward one from the Councillors elected for the Birkdale South Ward one from among the Councillors elected for the Birkdale East Ward one from among the Councillors elected for the Birkdale West Ward and one from among the Councillors elected for the Ainsdale Ward or in each case from among the persons qualified to be Councillors whose qualifying property is situate in any of the said wards.

(3) For the purposes of the said first election the said additional Aldermen instead of being elected in manner provided by the Municipal Corporations Acts shall be elected by resolution of a majority of those present and voting at a meeting of the Councillors elected for the five new wards into which the added areas are formed which meeting shall be called by the Town Clerk of the Borough and shall be presided over by one of the said Councillors (to be chosen by the meeting) who in the event of an equality in the voting on any resolution shall have a casting vote in addition to his vote as a Councillor.

Retirement of
Councillors
for the five
new wards
and of addi-
tional Alder-
men elected
in 1912.

Art. X.—(1) The Councillors elected for the Borough in the month of March One thousand nine hundred and twelve for the five new Wards constituted by this Order shall retire as follows:—

(A) The Councillor for each ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and twelve:

(B) The Councillor for each ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and fourteen:

(C) The other Councillor for each ward on the First day of November One thousand nine hundred and thirteen.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

(2) The five additional Aldermen elected for the Borough on the First day of April One thousand nine hundred and twelve shall retire as follows:— A.D. 1911.
Southport
Order.

(A) Two Aldermen to be specified by resolution of a majority of those present and voting at the meeting of Councillors at which the said five additional Aldermen are elected on the Ninth day of November One thousand nine hundred and thirteen:

(B) The other three Aldermen on the Ninth day of November One thousand nine hundred and sixteen.

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the Borough shall at the next meeting following the commencement of this Order and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

Art. XI.—(1) (A) Sections 39 to 46 of the Southport Improvement Act 1871 shall be repealed. Local Acts
and Orders.

(B) Sections 75 to 82 of the Southport Improvement Act 1865 and Sections 61 62 and 63 of the Southport Improvement Act 1871 shall not be in force within or apply to any part of the added areas.

(C) Sections 2 to 7 13 to 19 22 to 43 45 53 to 60 66 67 72 to 74 86 to 89 93 95 to 104 113 to 116 120 121 123 to 129 131 133 to 138 142 143 and 147 of the Southport Improvement Act 1865 Sections 64 70 71 75 and 77 to 79 of the Southport Improvement Act 1871 and Sections 5 to 13 15 to 23 and 31 of the Southport Improvement Act 1875 shall for a period of one year from the commencement of this Order remain in force in and apply only to the area comprised in the existing Borough and shall not be in force within or apply to any part of the added areas and from and after the expiration of that period shall be repealed:

Provided that notwithstanding the continuance in force of the said sections the Corporation may make byelaws under the Public Health Acts with respect to the subject matter of any of the said sections.

(2)—(A) Subject to the provisions of this Order the unrepealed provisions of the Local Acts and of the Confirmation Acts specified in the Schedule A. to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in that Schedule and of

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911. any other Local Act (including any Local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing Borough or the Corporation as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation thereof.

*Southport
Order.*

(B) In the application of the provisions of Part XVIII. of the Southport Corporation Act 1900 (in this Article called "the Act of 1900") to the officers and servants of the Urban Council who by virtue of this Order become officers and servants of the Corporation the said provisions shall be deemed to have effect as if each such officer or servant had throughout the whole period of his employment by the Urban Council before the commencement of this Order been in the service of the Corporation instead of in the service of the Urban Council.

For the purposes of Part XVIII. of the Act of 1900 teachers who at the commencement of this Order are or hereafter shall be permanently and exclusively employed by the Corporation as the local education authority for the borough or are permanently and exclusively employed in any public elementary school in the borough (whether provided by the Corporation as the local education authority or not) or are permanently and exclusively employed in any school college or hostel provided by the Corporation as the local education authority for the purpose of Part II. of the Education Act 1902 (and any such teacher is in this Article called "the teacher") shall be deemed if the Corporation in their discretion think fit to be persons in the employment of the Corporation whom or some of whom (according to their qualifications or conditions of service or otherwise) the Corporation may in their discretion determine to be a class or classes of persons entitled to contribute to and participate in the benefit of any fund established under the provisions of the Act of 1900 and upon any such determination such provisions shall apply accordingly:

Provided that in exercising their discretion under this Article the Corporation shall not differentiate between classes of teachers on the ground alone that any such class is composed of persons employed in public elementary schools provided by them or in public elementary schools not so provided or of persons who were before the commencement of this Order employed in the existing borough or of persons employed in the added area. :—

(i) In the application of the Act of 1900 to any teacher to whom the Elementary School Teachers' (Superannuation) Act 1898

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911.

*Southport
Order.*

to the teacher or the credit to him in respect of future contributions to the superannuation fund of the amount of any payments made by him to that fund in respect of service before the date of the amending resolution in respect of any part proportion or amount of his salary or wages in excess of the part proportion or amount in respect of which as determined by the said amending resolution he will thereafter be entitled to contribute to and receive an annual allowance from the superannuation fund:

- (iv) No part of any benefit or superannuation allowance received by any teacher from the superannuation fund shall be deemed to be paid out of or received from public money within the meaning of the Act of 1898 or any rules made thereunder or otherwise.

(3)—(A) Section 34 of the Birkdale Improvement Act 1904 shall continue to apply to the added area and Section 55 of that Act shall extend and apply to the Borough with the substitution in those Sections of a reference to the Corporation of the Borough for any reference to the Urban Council. The remaining provisions of the said Act shall be repealed.

(B) The provisions of the Tramways Orders Confirmation (No. 2) Act 1901 so far as that Act relates to the Birkdale Urban District Council Tramways Order 1901 shall subject as herein-after provided remain in force within that part of the Borough which comprises the area of the Urban District and a reference to the Corporation of the Borough shall be substituted for any reference therein to the Urban Council:

Provided that upon the vesting in the Corporation of any tramways constructed under the said Order the provisions of that Order with respect to rates fares and charges shall be repealed and the provisions with respect to rates fares and charges in force in the area of the existing Borough shall then apply to the area of the Urban District.

(c) The provisions of the Electric Lighting Orders Confirmation (No. 2) Act 1891 so far as that Act relates to the Southport Electric Lighting Order 1891 shall not extend and apply to that part of the Borough which comprises the area of supply under the Birkdale Electric Lighting Order 1898 (confirmed by the Electric Lighting Orders Confirmation (No. 8) Act 1898) until such date as the Corporation become the Undertakers under the last-mentioned Order and until that date all powers rights and duties of the Urban Council existing at

(in this Article called "the Act of 1898") applies the amount of the superannuation allowance to be made to the teacher upon retirement under the provisions of the Act of 1900 shall be complementary to the amount of the deferred annuity to which the teacher is entitled and to the superannuation allowance which may be granted to the teacher under the Act of 1898 (in this Article herein-after called "the benefits under the Act of 1898") and the salary or wages in respect of which he shall contribute to and receive an annual allowance from the superannuation fund under the provisions of the Act of 1900 shall be so much (if any) of the actual salary or wages for the time being receivable by him as remains after deducting from that last-named salary or wages a sum equal to one and a half times the amount of the benefits under the Act of 1898 receivable by him. Provided that the total amount of the contributions to be so made by him shall be at such rate or rates per centum per annum on the salary or wages calculated as aforesaid as the Corporation acting on the advice of an actuary (being a Fellow either of the Institute of Actuaries or of the Faculty of Actuaries in Scotland) shall determine to be proper so that the total amount of the contributions made by the teacher at the time when he becomes entitled to an annual allowance from the superannuation fund shall as nearly as may be bear the same ratio to the amount of such allowance as the total amount of the contributions made at the like time by any other officer or servant admitted to the benefits of the Act of 1900 with a like service shall bear to the amount of the annual allowance receivable by that officer or servant:

A.D. 1914.

*Southport
Order.*

- (ii) For the purpose of giving effect to the provisions of this subdivision the Corporation shall by resolution from time to time determine the amount of the benefits under the Act of 1898 and prescribe a scale determining the rate or rates of contribution aforesaid:
- (iii) If at any time hereafter under the Act of 1898 or by reason of the passing of any general Act of Parliament whether in this or in any subsequent session of Parliament or otherwise the benefits under the provisions of the Act of 1898 or otherwise shall be materially increased the Corporation shall by an amending resolution make such provision as shall be necessary to meet the altered circumstances and by that resolution shall provide for the return

the commencement of this Order under the said Birkdale Electric Lighting Order 1898 or under any agreement made in connexion therewith shall vest in and attach to the Corporation of the Borough and a reference to the Corporation of the Borough shall be substituted for any reference therein to the Urban Council. Upon the date on which the Corporation become the Undertakers under the said Birkdale Electric Lighting Order 1898 that Order shall be repealed :

A.D. 1911.
Southport
Order.

Provided that the Corporation of the Borough subject to the provisions of the said Southport Electric Lighting Order 1891 may for the purpose of supplying electrical energy in the other parts of the Borough lay down and maintain in and through that part of the Borough which comprises the said area of supply such mains or electric lines as may be necessary for that purpose. In the exercise of the powers contained in this proviso the Corporation shall not place any works over or under any tramway leased to the Southport Tramways Company Limited except in accordance with the provisions contained in Section 11 of the said Southport Electric Lighting Order 1891 nor shall they alter the position of any wires belonging to the Birkdale District Electric Supply Company Limited except in accordance with the provisions of Section 13 of that Order.

(4)—(A) The Southport Water (Transfer) Act 1901 shall be altered by the omission of all references therein to the Urban District the Urban Council the number of members of the Southport Birkdale and West Lancashire Water Board appointed by the Urban Council and the apportionment between the Corporation of the Borough and the Urban Council of any deficiency in the net revenue of the said Water Board and by the substitution for references to the existing Borough and the Corporation thereof of references to the Borough and the Corporation thereof and by the substitution in Section 6 of the said Act for the words "Six members to be appointed by the Corporation" of the words "Ten members to be appointed by the Corporation".

(B) The persons who at the commencement of this Order represent the Urban Council on the said Water Board shall cease to be members of that Board and the Council of the Borough shall on or as soon as practicable after the said date appoint from amongst themselves the four additional members of that Board whom they are by virtue of this Order empowered to appoint and each of the persons so appointed shall continue in office until the next triennial appointment of members of the Board.

(C) Notwithstanding anything contained in Section 34 of the Southport Birkdale and West Lancashire Water Board Act 1905 the Local Government Board may on the application of the said Water

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911. Board or any constituent authority thereof or of the Council of any
Southport such urban district as is provided for in that section by Provisional
Order. Order make such provision as to the constitution of the said Water Board or the contribution by any one or more of the Constituent Authorities thereof as in the opinion of the Local Government Board is necessary and proper in consequence of this Order.

The provisions of the Act of 1888 relating to Provisional Orders shall so far as they are applicable and with any necessary modifications extend and apply to any Provisional Order made in pursuance of this subdivision.

Provided that no Provisional Order made under this Article shall make any provision for the contribution by the Rural District Council of West Lancashire to any deficiency in the net revenue of the said Water Board nor (unless any parish or parishes within the limits of supply of the said Water Board now forming part of the West Lancashire Rural District shall become urban) for reducing the number of representatives of the said Rural District Council on the said Water Board.

(5) All the powers rights and duties which by virtue of the provisions of Section 14 of the Southport and Cheshire Lines Extension Railway Act 1892 are vested in or attach to the Urban Council at the commencement of this Order shall be transferred to and vest in and attach to the Corporation and a reference to the Corporation shall be substituted for any reference in the said provisions to the Birkdale Local Board.

For pro-
tection of
Southport
Tramways
Company
Limited.

(6) Nothing in this Order shall be construed so as to prevent the Southport Tramways Company Limited from opposing if they think fit any application to authorise the construction of any tramways or light railways by the Corporation within so much of the added areas as was comprised within the Urban District of Birkdale on the Ninth day of August nineteen hundred and one.

Byelaws &c.

Art. XII. Subject to the provisions of this Order—

(1) All byelaws with respect to buildings made by the Corporation which at the commencement of this Order are in force in the existing Borough shall remain in force and apply only to the area comprised in the existing Borough for a period of one year from the said date or until they are repealed whichever shall first happen :

(2) All byelaws with respect to buildings made by the Urban Council or their predecessors which at the commencement of this Order are in force in the Urban District shall

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

remain in force in and apply only to that part of the Borough which comprises the area of the Urban District for a period of one year from the said date or until they are repealed whichever shall first happen and the said byelaws shall have effect as if they had been made by the Corporation and as if the Corporation were referred to therein instead of the Urban Council or their predecessors :

A.D. 1911.

*Southport
Order.*

- (3) All byelaws and regulations (other than the byelaws referred to in subdivision (1) of this Article) and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing Borough shall thenceforth apply to the Borough until or except in so far as any such byelaws regulations list of tolls table of fees and payments or scale of charges may be altered or repealed :
- (4) All byelaws and regulations with respect to any cemetery or recreation ground belonging to or provided by the Urban Council and all tables of fees payments or sums in relation thereto made by that Council and in force immediately before the commencement of this Order shall remain in force and apply to the cemetery or recreation ground as the case may be until altered or repealed and shall have effect as if the same had been made by the Corporation and as if the Corporation were referred to therein instead of the Urban Council :
- (5) All byelaws and regulations made by the County Council and the Urban Council or their predecessors (other than the byelaws and regulations referred to in subdivisions (2) and (4) of this Article) and in force immediately before the commencement of this Order in any part of the added areas shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved by the Urban Council before that date or have been sent to the surveyor or clerk to the Urban Council one month at least before that date and have not been disapproved by that Council As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911.

*Southport
Order.*

the Corporation and the Borough were referred to therein instead of the Urban Council and the Urban District. Provided that any proceedings which if this Order had not been made might have been taken by the County Council or the Urban Council for any offence committed before the commencement of this Order against any bye-laws and regulations which by virtue of this subdivision cease to be in force may be taken by the Corporation as if those byelaws and regulations had remained in force and as if the Corporation had been substituted therein for that Council.

Town clerk
and other
officers con-
tinued.

Art. XIII.—(1) The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Borough
auditors.

(2) The auditors of the existing Borough who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the borough auditors until the next ordinary day of election of borough auditors.

Compensa-
tion to exist-
ing officers.

Art. XIV.—(1) The provisions of subsection (13) of Section 118 and of Section 119 of the Act of 1888 shall apply to all persons who at the commencement of this Order hold office as officers or servants of the Urban Council with such modifications as are necessary to make those provisions applicable to the said officers and servants and to the Corporation.

(2) Every clerk to justices and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation and the compensation payable to any person who becomes entitled to compensation in pursuance of subdivision (1) of this Article regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes

[1. & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

as defined by the Public Health Act 1875 out of the improvement fund and improvement rate of the Borough and in every other case out of the borough fund and borough rate of the Borough and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

A.D. 1911.

*Southport
Order.*

(3) For the purposes of subdivision (2) of this Article any Clerk to Justices officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the Secretary of State the County Council or the Standing Joint Committee of the County or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

(4) All workmen who have been in the service of the Urban Council for not less than two years at the commencement of this Order if they so desire shall be taken over by the Corporation and shall have the same tenure as they had immediately before the commencement of this Order but shall be entitled to the rates of pay and other benefits enjoyed by workmen now employed by the Corporation in similar positions.

Provision as
to workmen
of Urban
Council.

Art. XV.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Urban Council in relation exclusively to any part of the added areas shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough.

Actions &c.
not to abate.

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Urban Council or their predecessors in relation exclusively to any part of the added areas shall be of as full force and effect against or in favour of the Corporation of the Borough and may be continued and enforced as fully and effectually as if instead of the Urban Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

Saving for
contracts &c

Art. XVI. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation

Corporation
property &c.

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911. shall hold enjoy and exercise for the benefit of the Borough all the
Southport powers which at the date aforesaid are exerciseable by or vested in the
Order. Corporation for the benefit of the existing Borough and all liabilities
 which on the date aforesaid attach to the Corporation in respect of the
 existing Borough shall from and after that date attach to them in
 respect of the Borough.

Liquidation of Art. XVII. The Urban Council shall liquidate as far as practicable
current debts before the commencement of this Order all current debts and liabilities
and liabilities incurred by them.
by Urban
Council.

Property &c. Art. XVIII. Subject to the provisions of this Order—
of Urban
Council.

(1) All property and liabilities which immediately before the
 commencement of this Order are vested in or attach to
 the Urban Council shall by virtue of this Order be
 transferred to and vest in and attach to the Corporation
 as Urban Sanitary Authority :

Abolition of (2) The Urban Council shall at the commencement of this
Urban Order be abolished and cease to exist :
Council.

Arrears of (3) All arrears of rates made by the Urban Council and all
rates &c. other payments which at the commencement of this Order
 are due or owing to the Urban Council may be collected
 and recovered by the Corporation :

Adaptation (4) For the purposes of the application of Section 62 of the Act
of provisions of 1888 to any adjustment which may become necessary
as to adjust- in consequence of this Order that section shall have effect
ment. as if in subsections (5) (6) and (7) thereof the expression
 "Council" included any authority affected by this Order
 or by anything done in pursuance of this Order and as
 if in the case of any such authority not otherwise
 empowered to borrow under any Act or on any security
 or in any manner mentioned in the said subsection (6)
 that subsection empowered the authority to borrow under
 any Act relating to and conferring on the authority a
 power to borrow on the security of all or any of the funds
 rates and revenues of the authority and in the manner
 provided by the said Act but without the consent of any
 other authority and subject to the requirement that all
 money so borrowed shall be repaid within such period as
 the Local Government Board may sanction :

(5) For the purposes of the application of Section 62 of the
 Act of 1888 to any adjustment which may become
 necessary in consequence of this Order so far as it

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

relates to the amalgamation of the Township of Birkdale and the foreshores with the existing Township of Southport that section shall have effect—

A.D. 1911.

*Southport
Order.*

(A) As if the Overseers of the Township of Southport and the persons who immediately before the commencement of this Order were the Overseers of the Township of Birkdale or where the circumstances of the case so require any persons who may be substituted for those persons by an order of the Local Government Board were within the meaning of the said section as applied by this Article authorities affected by this Order;

(B) As if the poor rate or any other rate leviable in pursuance of the said section as applied by this Article were substituted for any fund mentioned in the section; and

(C) As if for subsections (6) and (7) of the said section there were substituted the subsections hereunto appended that is to say:—

“ (6) If it is necessary for the purpose of giving effect to any agreement or award for an adjustment that a separate rate shall be levied in part of a parish only the agreement or award may authorise the making of such a separate rate as if it were a poor rate and as if the part of the parish on which it is to be levied were a whole parish.”

“ (7) Any sum paid for the purposes of any adjustment or in pursuance of any order or award of an arbitrator shall be applied by such person in such manner and for such purpose as the Local Government Board may authorise or direct ”:

(6) The accounts of the Urban Council and of the committees and officers of that Council shall be made up to the commencement of this Order and shall be audited by the District Auditor in like manner and subject to the like incidents and consequences as if this Order had not been made:

*Audit of
accounts of
Urban Coun-
cil.*

Provided that the audit may be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding:

Provided also that any sum certified by the District Auditor to be due from any person shall be paid to the treasurer of the Borough and shall form a matter for adjustment under Section 62 of the Act of 1888.

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911.

*Southport
Order.*
Mortgage
debts of Cor-
poration and
of Urban
Council.

Art. XIX.—(1) The liability for repayment of any sums borrowed by the Urban Council or of so much of any of those sums as will be owing at the commencement of this Order and for the payment of the interest thereon shall by virtue of this Order be transferred and attach to the Corporation and so much as will at the commencement of this Order be outstanding in respect of any sums borrowed as aforesaid and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the improvement fund and improvement rate of the existing Borough shall be charged upon the improvement fund and improvement rate of the Borough so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing Borough shall by virtue of this Order be charged upon the borough fund and borough rate of the Borough and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon any other rate levied within the existing Borough shall be charged upon the corresponding rate to be levied in the Borough and all those sums shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

(2) Nothing in this Order shall prejudice or affect any mortgage or other security which has been granted in respect of any borrowed moneys the liability for the repayment of which shall be transferred to the Corporation in pursuance of subdivision (1) of this Article or the powers of any person entitled under any such mortgage or other security to enforce the same as if this Order had not been made and where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Order the power may continue to be exercised as if this Order had not been made and the improvement rate of the Borough shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable if this Order had not been made.

Adoptive
Acts.

Art. XX. The provisions of the Baths and Washhouses Acts 1846 to 1899 the Public Health Acts Amendment Act 1890 the Infectious Disease (Prevention) Act 1890 the Public Libraries Acts 1892 to 1901 and the Notification of Births Act 1907 shall be in force in and apply to the Borough as if the same had been adopted therein.

Powers under
Section 33 of
Act of 1894.

Art. XXI. Subject to the provisions of any Order which the Local Government Board or a Secretary of State may hereafter make—

(1) The provisions of any Order heretofore made by the Local Government Board and conferring upon the Council of the existing Borough any of the matters mentioned in Section 33

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

of the Act of 1894 and in that Order shall be deemed to have effect as if any reference therein to a parish wholly comprised within the existing Borough extended and applied to a parish wholly comprised within the Borough:

A.D. 1911.
—
Southport
Order.

- (2) The powers duties and liabilities conferred on the Urban Council in relation to the existing Townships of Birkdale and Ainsdale—

(A) by the Order of the Local Government Board dated the twenty-sixth day of November One thousand nine hundred and four as extended and applied by the County of Lancaster (Birkdale and Ainsdale) Confirmation Order 1905 in respect of a parish council under paragraph (H) of subsection (1) of Section 8 of the Act of 1894 with respect to the acceptance and holding of gifts of property ; and

(B) by the Order of the Local Government Board dated the twentieth day of September One thousand nine hundred and six in respect of a parish council under Section 14 of the Act of 1894 with respect to any charity held wholly or partly for the benefit of the inhabitants of either of the existing Townships of Ainsdale or Birkdale subject as provided in the said Order for the appointment of Trustees of charities on the nomination of the Councillors for a particular ward or wards in certain cases and as herein-after provided ;

shall by virtue of this Order vest in and attach to the Corporation in respect of the Townships comprised in the Borough in like manner and with the like effect in all respects as if the Corporation and the Townships comprised in the Borough had been referred to in those Orders instead of the Urban Council and the Townships comprised in the Urban District :

Provided that in the case of any charity which is held wholly or partly for the benefit of the inhabitants of the existing Township of Birkdale or the existing Township of Southport the powers duties and liabilities referred to in paragraph (B) of this subdivision shall be exerciseable by the Corporation as if the area of the said existing Township were a separate township comprised in the Borough :

- (3) Any other Orders made by the Local Government Board in pursuance of Section 33 of the Act of 1894 by which any powers duties or liabilities were conferred upon or transferred to the Urban Council shall cease to apply and have effect :

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911.

*Southport
Order.*

Powers under
Public
Health Acts
Amendment
Act 1907.
7 Edw. 7.
c. 53.

- (4) The provisions of any Order made by the Local Government Board or by the Secretary of State and declaring to be in force in the existing Borough any Parts or Sections of the Public Health Acts Amendment Act 1907 shall have and shall be deemed always to have had effect as if any reference in those provisions to the existing Borough extended and applied to the Borough and as if the said Parts and Sections were accordingly declared to be in force in the Borough.

Transfer of
public ele-
mentary
schools &c. to
Corporation.

Art. XXII. For the purposes and subject to the provisions of the Education Acts 1870 to 1910—

- (1) All public elementary schools (including the sites and schoolhouses) provided by the local education authority and any other land acquired and held by the local education authority for purposes of elementary education and situate within any part of the added areas with the furniture and fittings of the schoolhouses shall by virtue of this Order be transferred to and vested in the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority and all contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of the said public elementary schools land furniture or fittings or of any other public elementary school situate in any part of the added areas or with respect to the officers teachers and servants of any of the said public elementary schools shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority:

Provided that Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this subdivision:

Mortgage
debts in
respect of
transferred
schools.

- (2) The liability for repayment of so much of any loan raised exclusively in respect of any public elementary school (including the site and schoolhouse) and of any other land furniture or fittings transferred to and vested in the Corporation by virtue of this Order as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

shall be charged on the borough fund and the borough rate of the Borough and shall be repaid by the Corporation within the period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable:

A.D. 1911.

*Southport
Order.*

(3) Any byelaws in force in the existing Borough immediately before the commencement of this Order shall from and after that date apply to the Borough until revoked or altered and from and after that date any byelaws then in force in any part of the added areas shall cease to be in force:

Education
byelaws.

(4) Any managers of public elementary schools in the added areas who were appointed by the County Council or Urban Council shall vacate office at the commencement of this Order.

Managers.

Art. XXIII. The total amount in the pound of all rates other than the poor rate to be levied by the Corporation in respect of any hereditament in the area of the Township of Ainsdale—

Differential
rating.

(i) during the year ending the Thirty-first day of March One thousand nine hundred and thirteen shall not exceed three shillings and eightpence halfpenny;

(ii) in any one year during the succeeding period ending the Thirty-first day of March One thousand nine hundred and twenty shall not exceed four shillings and twopence halfpenny;

in each pound of the rateable value of the hereditament.

Art. XXIV.—(1) Subject to the provisions of the Article of this Order whereof the marginal note is "Differential rating" and subject to rates already laid at the commencement of this Order the same uniform rates (including poor rate) shall be levied throughout the Borough. Provided that if and so long as Ainsdale remains a township separate from the Township of Southport the poor rate shall be excluded from calculation for the purpose hereof. The Corporation shall not create any special rating areas within the Borough under the powers of subsection (4) of Section 211 of the Public Health Act 1875.

Uniformity
of certain
rates and
charges.

(2) After the Twenty-fifth day of March One thousand nine hundred and twelve the Corporation shall make the same charges for gas supplied by them under similar circumstances throughout the Borough.

(3) After the commencement of this Order the Corporation shall charge the same scale of fees for interments throughout the Borough.

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911.

*Southport
Order.*

Corporation
to be Burial
Board for
Borough.

Cemetery of
Urban
Council to be
held by Cor-
poration
under Public
Health Acts.

Saving exist-
ing rights in
relation to
burials.

Art. XXV.—(1) The Corporation shall be the Burial Board for the Borough and shall have within the Borough to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts.

(2) The cemetery by subdivision (1) of Article XVIII. of this Order transferred from the Urban Council to the Corporation shall be held maintained and managed by the Corporation as a cemetery acquired and constructed under the powers of the Public Health (Interments) Act 1879 and the provisions of that Act and of all enactments applicable to a cemetery so acquired and constructed shall continue to extend and apply to such cemetery.

(3) In relation to every burial ground or cemetery vested before the commencement of this Order in the Corporation of the existing Borough or forming part of the property transferred to the Corporation of the Borough by virtue of this Order—

(i) Nothing in this Order shall prejudice or affect any such right of burial or of constructing a place of burial or of erecting and placing any monument gravestone tablet or monumental inscription as a parishioner an inhabitant or any other person has had or acquired before the commencement of this Order:

(ii) The condition subject to which after the commencement of this Order any such right may be acquired enjoyed or exercised by a person who is not an inhabitant of the area for which the burial ground or cemetery was provided shall be in all respects such as to safeguard and give full effect to the preferential enjoyment or exercise of the like right by a person who had or acquired the right before the commencement of this Order:

(iii) In the sale of any such right after the commencement of this Order the Council of the Borough as the Burial Board for the Borough shall so far as practicable entertain and give effect to an application to purchase the right by an inhabitant of the area for which the burial ground or cemetery was provided in preference to a like application by any other person:

(iv) Nothing in this Order shall prejudicially affect any right privilege authority or duty which immediately before the commencement of this Order will be exerciseable by or will attach to any incumbent or sexton under the Burial Acts.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

Art. XXVI.—(1) At the commencement of this Order such members if any of the police force of the County as shall be determined by agreement to be made as soon as practicable after the date of the Act of Parliament confirming this Order between the Standing Joint Committee of the County and the Watch Committee of the existing Borough or in default of any such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the Borough and any member of the County police force so transferred shall hold office upon the same tenure and upon the same terms and conditions as if this Order had not been made and while he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he is entitled shall not be less than they would have been if this Order had not been made.

A.D. 1911.
Southport
Order.
 County
 police.

(2) The provisions of Section 15 (2) of the Police Act 1890 as amended by the Police (Superannuation) Act 1906 shall extend and apply to and in relation to any member of the police force transferred under the powers of this Article as if that member had removed with the written sanction of the Chief Constable of the County.

53 & 54 Vict.
 c. 45.
 6 Edw. 7.
 c. 7.

(3) All the county police stations situate in any part of the added areas with the residences for constables and cells connected therewith and the fittings and furniture thereof respectively shall by virtue of this Order vest in and be transferred to the Corporation as from the commencement of this Order for all the estate and interest therein of the County Council and there shall be paid by the Corporation to the County Council out of the borough fund in consideration of such transfer such sums as shall be agreed upon or as in default of agreement shall be settled by arbitration in manner provided by the Act of 1888.

County police
 stations.

Art. XXVII.—(1) In any case where the extension of the existing Borough by this Order affects the distribution of the proceeds of the local taxation licences or of the estate duty grant or of the Local Taxation (Customs and Excise) duties between the County and the Borough or between the County and the Borough on the one hand and any other County Borough on the other hand or any financial relations or questions between those areas or any adjustment which has been made in regard to the said distribution or financial relations or questions equitable adjustments may be made between the areas interested.

Adjustment
 of financial
 relations
 between
 County
 and County
 Boroughs.

For the purposes of this subdivision or of anything done or to be done in pursuance of this subdivision any reference in the said subdivision to the proceeds of licences or duties shall include a reference to the sums which in pursuance of subsection (4) of Section 17 of the Finance Act 1907 as amended by Section 6 of the Finance Act 1908 and

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911. Section 88 of the Finance (1909-10) Act 1910 or of any subsequent
Southport Act have been paid or will be payable in lieu of those proceeds.
Order.

(2) Any such adjustment as is authorised by subdivision (1) of this Article may be made by agreement between the Councils of the Borough the County and the County Boroughs affected and if such adjustment shall not have been made before the Thirtieth day of September One thousand nine hundred and twelve then on the application of any of the Councils interested the Local Government Board may if they think fit either make the adjustment themselves or appoint an arbitrator to make it.

(3) In any case in which an agreement for equitable adjustments as aforesaid shall not have been made the provisions of the Act of 1888 relating to adjustments between Administrative Counties and County Boroughs shall apply with the necessary modifications and the Local Government Board or an arbitrator appointed by them as the case may be shall be substituted in those provisions for the Commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Order or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Local Government Board be deemed to be made by them otherwise than as arbitrators and any arbitrator appointed by them shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly :

Provided—

(A) that in lieu of subsection (6) of Section 61 of the Act of 1888 subsections (1) and (5) of Section 87 of the Act of 1888 shall apply to any inquiries which may be directed by the Local Government Board under this Article and to the costs of those inquiries ; and

(B) that subsection (6) of Section 32 of the Act of 1888 shall apply to any agreement or award made under this Article.

Adjustment
for purposes
of Licensing
(Consolida-
tion) Act
1910.

(4)—(A) An equitable adjustment shall be made between the County and the Borough respecting the interest of the added areas in any compensation fund constituted under Section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act.

(B) Such adjustment shall be made by agreement between the Compensation Authorities (as defined by the Licensing (Consolidation) Act 1910) for the County and for the Borough within twelve months from the commencement of this Order or in default of agreement by an arbitrator appointed by the Secretary of State.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

(c) For the purpose of such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of that Act shall apply accordingly.

A.D. 1911.

*Southport
Order.*

Art. XXVIII. Subject to the provisions of Section 54 of the Act of 1888—

County
councillor
and electoral
division.

(1) The Birkdale Electoral Division of the County as diminished by the inclusion of the added areas in the Borough shall continue to be an Electoral Division of the County and the person who immediately before the commencement of this Order is the county councillor representing the said electoral division shall continue to represent that electoral division as if he had been originally elected to represent that electoral division as altered by this Order:

(2) No county alderman or county councillor in office immediately before the commencement of this Order shall be deemed to lose his qualification by reason of the inclusion of any part of the added areas in the Borough by this Order.

Art. XXIX.—(1) It shall be the duty of the Corporation within the period of two years after the commencement of this Order to carry out and execute to the satisfaction of the Local Government Board works for effectually sewerage the Township of Ainsdale and for the disposal of the sewage of the added areas.

Obligations
as to execu-
tion of sewage
works.

(2) The said works shall be so laid out and constructed as to convey the sewage of the added areas into and through the sewerage system of the existing Borough and to dispose of the same at the sewage disposal works of the Corporation situate at Crossens which shall so far as necessary be extended or enlarged. Provided that any scheme for carrying out the said works shall be subject to the approval of the Local Government Board.

(3) The said works shall be completed within the said period of two years and upon the completion thereof the Corporation shall discontinue the use for sewage disposal purposes of the existing works of the Urban Council in or adjoining Chatham Road except that the same may be used for the purpose of dealing with storm water from the added areas.

(4) In the event of the Corporation failing to comply with the provisions of this Article such provisions may be enforced in the manner provided by Section 299 of the Public Health Act 1875 as if this Article were an order of the Local Government Board limiting the time for the performance by the Corporation of their duty in that

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911. behalf and the Corporation had not performed the duty hereby imposed within the time limited by the order.

*Southport
Order.*
Alteration of
townships.

Art. XXX. The Township of Birkdale and the foreshores shall be amalgamated with the existing Township of Southport.

Guardians
and wards.

Art. XXXI. Subject to the provisions of Section 60 of the Act of 1894 and as regards any alteration of the wards hereby constituted to the provisions of that Act as to the alteration of wards for the election of guardians the following provisions shall have effect:—

- (1) The Township of Southport shall for the purposes of the election of guardians be divided into fourteen wards:
- (2) The ten existing wards and the number of guardians respectively assigned thereto shall remain unaltered:
- (3) So much of the Township of Southport as is comprised in the area of the Township of Birkdale and the foreshores shall be divided into four new wards which shall respectively be called and be co-terminous in area with the Birkdale North Ward the Birkdale South Ward the Birkdale East Ward and the Birkdale West Ward constituted by Article VIII. of this Order:
- (4) One guardian shall be assigned to each of the Birkdale North and Birkdale West Wards and two guardians shall be assigned to each of the Birkdale South and Birkdale East Wards:
- (5) The persons who at the commencement of this Order hold the office of Guardian of the Poor for the North South East and West Wards of the Township of Birkdale shall be deemed to have been elected and shall represent the Birkdale North Ward the Birkdale South Ward the Birkdale East Ward and the Birkdale West Ward respectively of the Township of Southport upon the Board of Guardians of the Ormskirk Union until the date on which they would have retired if this Order had not been made.

Appointment
of Overseers.

Art. XXXII. Until the Township of Ainsdale is incorporated or united with the Township of Southport the number of Overseers for the Township of Southport shall be four and the Corporation shall at all times appoint and keep appointed the same four persons as Overseers for the said Township of Ainsdale of whom two shall be ratepayers in the area of the existing Borough one shall be a ratepayer in the area of the existing Township of Birkdale and one shall be a ratepayer in the Township of Ainsdale.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

Art. XXXIII. Nothing in this Order shall affect the ecclesiastical divisions of any township or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of any existing township affected by this Order. \

A.D. 1911.

*Southport
Order.*

Ecclesiastical
divisions and
charities.

Art. XXXIV. Until new valuation lists are in force the valuation lists of the existing Townships of Birkdale and Southport shall be deemed to form the valuation list of the Township of Southport.

Valuation
lists.

Art. XXXV. Subject to any future revision the basis or standard of the county rate for the County shall be altered by the omission therefrom of the amount appearing in such basis or standard as the total annual value of the property in each of the Townships of Birkdale and Ainsdale.

County rate
basis.

Art. XXXVI. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the registers of parochial electors and of jury lists the townships affected by this Order shall be deemed to continue unaltered until the new registers and lists come into operation :

Saving for
existing lists
of parliamen-
tary voters
&c.

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order in the year One thousand nine hundred and twelve the register of parochial electors for the existing Townships of Birkdale and Southport shall together form the register of parochial electors for the Township of Southport.

Art. XXXVII. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect that is to say :—

Settlement
and removal
of the poor.

(1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in either of the existing Townships of Birkdale or Southport by reason of any residence completed or in the course of completion or of any act or thing done or in the course of being done or of any status condition right or privilege acquired or created or in the course of acquisition or creation in either of the said existing townships shall be deemed to have acquired or to be in the course of acquiring a settlement in the Township of Southport :

(2) Every person who at the commencement of this Order has acquired or is in the course of acquiring a status of irremovability from the Ormskirk Union by reason of residence in either of the existing Townships of Birkdale or Southport shall be deemed to have acquired or to be in course of acquiring the like status by reason of residence in the Township of Southport.

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911.

*Southport
Order.*

Saving for
contribution
orders.

Arrears of
rates.

Art. XXXVIII. Notwithstanding the alterations effected by this Order all contribution orders made by the Guardians of the Poor of the Ormskirk Union before the commencement of this Order shall be as valid in law as if this Order had not been made.

Art. XXXIX. All arrears of rates made by the Overseers of the Poor and due or owing at the commencement of this Order in respect of hereditaments in the existing Townships of Birkdale and Southport or in any part of the foreshores shall be collected and recovered by the Overseers of the Poor of the Township of Southport.

Balances.

Art. XL. Any balances standing in the books of the Guardians of the Poor of the Ormskirk Union to the credit of the Township of Birkdale shall be carried to the credit of the Township of Southport and any balance owing by the Township of Birkdale shall be deemed to be owing by the Township of Southport.

Borrowing
powers for
purposes of
Order.

Art. XLI. For the purpose of defraying any expenses under this Order which in the opinion of the Local Government Board are properly chargeable to capital the Corporation may borrow according and subject to the provisions and restrictions of the Public Health Act 1875 and may mortgage the borough fund and borough rate or the improvement fund and improvement rate of the Borough for the purpose of securing the repayment of any moneys so borrowed and the interest thereon Provided that all such moneys shall be repaid within such period not exceeding thirty years from the date of borrowing the same as the Corporation with the sanction of the Local Government Board determine.

Use of Victoria
Park and ad-
joining recrea-
tion ground.

Art. XLII. The Corporation shall not after the commencement of this Order use or permit to be used as fair grounds the Victoria Park in the Urban District or the recreation ground of the Corporation adjoining the said park.

Works below
high-water
mark not to
be com-
menced with-
out consent
of Board of
Trade.

Art. XLIII. The Corporation shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the Secretaries or Assistant Secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Corporation shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals If any such work be commenced or completed contrary to the provisions of this

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

Article the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Corporation and the amount of such costs and charges shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

A.D. 1911.
Southport
Order.

Art. XLIV. This Order may be cited as the Southport (Extension) Order 1911.

[Ch. clxxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 10) Act, 1911.

A.D. 1911.

*Southport
Order.*

The SCHEDULES above referred to.

SCHEDULE A.

PART I.—LOCAL ACTS.

Session and Chapter.	Title or Short Title.
28 & 29 Vict. c. cxcv. - -	The Southport Improvement Act 1865.
34 & 35 Vict. c. cxl. - -	The Southport Improvement Act 1871.
38 & 39 Vict. c. cxxvi. - -	The Southport Improvement Act 1875.
39 & 40 Vict. c. cxxvii. - -	The Southport Improvement Act 1876.
48 & 49 Vict. c. cxxii. - -	The Southport Improvement Act 1885.
63 & 64 Vict. c. lxvi. - -	The Southport Extension and Tramways Act 1900.
63 & 64 Vict. c. cclxxxi. - -	The Southport Corporation Act 1900.

PART II.—CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Order thereby confirmed.
43 & 44 Vict. c. xxxvi.	The Local Government Board's Provisional Orders Confirmation (Abingdon &c.) Act 1880.	Order relating to Southport dated 4th May 1880.
50 Vict. c. viii.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1886.	Order relating to Southport dated 24th May 1886.
50 & 51 Vict. c. cxi.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1887.	Order relating to Southport dated 6th June 1887.
53 & 54 Vict. c. lxxxv.	The Local Government Board's Provisional Orders Confirmation (No. 7) Act 1890.	Order relating to Southport dated 20th May 1890.
54 Vict. c. l. -	The Electric Lighting Orders Confirmation (No. 2) Act 1891.	The Southport Electric Lighting Order 1891.
58 & 59 Vict. c. lxxxvii.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1895.	The Southport Order 1895.
59 & 60 Vict. c. cv.	The Local Government Board's Provisional Orders Confirmation (No. 10) Act 1896.	The Southport Order 1896.
62 & 63 Vict. c. cx.	The Local Government Board's Provisional Orders Confirmation (No. 5) Act 1899.	{ The Southport Order (No. 1) 1899. The Southport Order (No. 2) 1899.
62 & 63 Vict. c. cclxxiii.	The Tramways Orders Confirmation (No. 2) Act 1899.	The Southport Corporation Tramways Order 1899.
2 Edw. 7. c. lxxxiv.	The Local Government Board's Provisional Orders Confirmation (No. 11) Act 1902.	The Southport Order 1902.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clxxxv.]
Provisional Orders Confirmation (No. 10) Act, 1911.

PART II.—CONFIRMATION ACTS—*continued.*

A.D. 1911.

Session and Chapter.	Short Title.	Order thereby confirmed.	<i>Southport Order.</i>
2 Edw. 7. c. ccii.	The Tramways Orders Confirmation (No. 1) Act 1902.	The Southport Corporation Tramways Order 1902.	
3 Edw. 7. c. lxi.	The Local Government Board's Provisional Orders Confirmation (No. 4) Act 1903.	The Southport Order 1903.	
5 Edw. 7. c. ii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1905.	The Southport Order 1905.	
5 Edw. 7. c. cvii.	The Local Government Board's Provisional Orders Confirmation (No. 11) Act 1905.	The County Borough of Southport Order 1905.	

SCHEDULE B.

PART I.—LOCAL ACT.

Session and Chapter.	Short Title.
4 Edw. 7. c. xc.	The Birkdale Improvement Act 1904.

PART II.—CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Order thereby confirmed.
61 & 62 Vict. c. ccvii.	The Electric Lighting Orders Confirmation (No. 8) Act 1898.	The Birkdale Electric Lighting Order 1898.
1 Edw. 7. c. clxxxi.	The Tramways Orders Confirmation (No. 2) Act 1901.	The Birkdale Urban District Council Tramways Order 1901.

Given under the Seal of Office of the Local Government Board
this Twenty-sixth day of May One thousand nine hundred
and eleven.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

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